

Chapter 10 Residential

10.5 Regulations Applying to the Residential Zone Category

10.5.1 General

10.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 10.5 apply to all lands, uses, **buildings** and **structures** in the Residential Zone category.

(2) Interpretation of the Residential Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Residential Zone category consists of the letters R, RD, RS, RT or RM, indicating the primary land use permitted in the respective zone.

(3) Interpretation of the Zone Label

In the Residential Zone category, the letters following the zone symbol in the zone label have the following meaning:

- (A) the letter "f" and a numerical value indicates the required minimum **lot frontage** in metres;
- (B) the letter "a" and a numerical value indicates the required minimum **lot area** in square metres;
- (C) the letters "au" and a numerical value indicates the required minimum **lot area** for each **dwelling unit** on a **lot**, in square metres;
- (D) the letter "u" and a numerical value indicates the permitted maximum number of **dwelling units** on a **lot**; and
- (E) the letter "d" and a numerical value indicates the permitted maximum floor space index for a **lot**.

10.5.20 Permitted Uses

10.5.20.1 General

(1) Lawfully Existing Public School, Private School

A **lawfully existing public school** or **private school** on a **lot** in the Residential Zone category is permitted on that **lot**, and:

- (A) any expansion or addition to the **lawfully existing public school** or **private school building** must comply with Section 150.48 and the requirements for the zone in which the **lot** is located; and
- (B) the **lawfully existing public school** or **private school** may be replaced with a new school **building** that complies with Section 150.48 and the requirements for the zone in which the **lot** is located.

10.5.20.40 Conversion of Lawfully Existing Buildings

(1) Conversion of Detached House to a Duplex, Triplex or Fourplex

In the Residential Zone category, a **detached house** may be converted to a **duplex**, **triplex** or **fourplex** through the construction of additional **dwelling units**, and:

- (A) if the original **building** was constructed prior to May 15, 2023, it may continue to be considered as a **lawfully existing building** provided the additional **dwelling units** are contained entirely within the **lawfully existing building**, subject to regulations 10.5.20.40(4) and (5). [By-law: 474-2023]

(2) Conversion of a Portion of a Semi-Detached House to Multiple Dwelling Units

In the Residential Zone category, a portion of a **semi-detached house** located on one **lot** may be converted to contain up to four **dwelling units** and may continue to be considered as a **semi-detached** house despite the **building** type definitions in Chapter 800, provided:

- (A) the original **building** was constructed prior to May 15, 2023 and the additional **dwelling units** are contained entirely within the **lawfully existing building**, subject to regulations 10.5.20.40(4) and (5);
- (B) The remaining portion of the **semi-detached house** located on an adjacent **lot** and within the same **semi-detached house** that is not subject to the conversion are considered to be located within the original **building** type for the purposes of applying the standards contained within this by-law;
- (C) For the purpose of regulations 10.10.40.10(1), 10.20.40.10(1), 10.40.40.10(1), 10.60.40.10(1), 10.80.40.10(1), 10.10.40.10(3), 10.20.40.10(3), 10.40.40.10(3), 10.60.40.10(2), 10.80.40.10(3), 10.10.40.30(1), 10.20.40.20(3), 10.20.40.30(2), 10.40.40.20(3), 10.40.40.30(2), 10.10.40.40(1), 10.20.40.40(1), 10.40.40.40(1), 10.60.40.40(1), 10.80.40.40(1) and 10.40.40.50(3), the portion of a **semi-detached house** located on one **lot** that is converted to contain up to four **dwelling units** referenced in this regulation may be considered to be a **duplex**, **triplex** or **fourplex** despite the **building** type definitions in Chapter 800; and
- (D) If both **dwelling units** within a **building** originally constructed as a **semi-detached house** are converted in accordance with this regulation, the **building** is to be considered the original **building** type, subject to regulation 10.5.20.40(5). [By-law: 474-2023]

(3) Conversion of a Portion of a Townhouse to Multiple Dwelling Units

In the Residential Zone category, a portion of a **townhouse** located on one **lot** may be converted to contain up to four **dwelling units** and may continue to be considered as a **townhouse** despite the **building** type definitions in Chapter 800 provided:

- (A) if the original **building** was constructed prior to May 15, 2023 and the additional **dwelling units** are contained entirely within the **lawfully existing building**, subject to regulations 10.5.20.40(4) and (5);
- (B) The remaining portions of the **townhouse** located on adjacent **lots** and within the same **townhouse** that are not subject to the conversion are considered to be located within the original **building** type for the purposes of applying the standards contained within this by-law;
- (C) For the purpose of regulations 10.10.40.10(1), 10.20.40.10(1), 10.40.40.10(1), 10.60.40.10(1), 10.80.40.10(1), 10.10.40.10(3), 10.20.40.10(3), 10.40.40.10(3), 10.60.40.10(2), 10.80.40.10(3), 10.10.40.30(1), 10.10.40.40(1), 10.20.40.40(1), 10.40.40.40(1), 10.60.40.40(1) and 10.80.40.40(1), the portion of a **townhouse** located on one **lot** that is converted to contain up to four **dwelling units** referenced in this regulation may be considered to be a **duplex**, **triplex** or **fourplex** despite the **building** type definitions in Chapter 800; and
- (D) If more than one **dwelling unit** within a **building** originally constructed as a **townhouse** is converted in accordance with this regulation, the **building** is to be considered the **lawfully existing** original **building** type, subject to regulation 10.5.20.40(5). [By-law: 474-2023]

(4) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulations 10.5.20.40(1), (2) and (3) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

(5) Definition of Lawfully and Lawfully Existing

For the purpose of regulations 10.5.20.40(1), (2), (3) and (4), clauses 10.5.30.41, 10.5.40.11, 10.5.40.21, 10.5.40.31, 10.5.40.41, 10.5.40.71, 10.10.40.11, 10.10.40.61, 10.10.40.71, 10.10.40.81, 10.10.80.200, 10.20.40.11, 10.60.40.81, 10.80.40.81, the words **lawful**, **lawfully** and **lawfully existing**, highlighted in bold type, in addition to the definitions provided in Zoning By-law 569-2013, Chapter 800 Definitions, includes:

- (A) **buildings**, **structures** or uses authorized or permitted on or before May 15, 2023; and
- (B) for which a building permit was **lawfully** issued before May 15, 2023. [By-law: 474-2023]

(6) Secondary Suite – Not Permitted in a Converted Semi-Detached House or Townhouse

Despite regulations 150.10.20.1(1), (2) and (3), a **secondary suite** may not be in the portion of a **semi-detached house** or **townhouse** converted to contain up to four **dwelling units** in accordance with regulations 10.5.20.40(2) or (3). [By-law: 474-2023]

(7) Parking Space Requirement for Conversion of a Lawfully Existing Building

Despite the **parking space** requirements in regulations 200.5.10.1(1) and 200.5.10.11(1)(C), **lawful parking spaces** for a **lawfully existing building** on a **lot** may be reduced for the purposes of constructing additional **dwelling units** in accordance with regulations 10.5.20.40(1), (2), (3) and (4), if:

- (A) the **driveway** located in a **front yard** or **side yard** abutting a **street** is removed and **landscaping** is provided subject to regulations 10.5.50.10(1) and 10.5.50.10(2); or
- (B) a **parking space** located in the **front yard** or **side yard** abutting a **street** is subject to regulation 10.5.80.10(3) or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.5.30 Lot Requirements

10.5.30.1 General

(1) Lot Requirements

Additional **lot** requirements are in each zone in the Residential Zone category.

10.5.30.11 Lot Area Exemptions

(1) Permitted Lot Area for Lawfully Existing Lots

In the Residential Zone category, if the **lawful lot area** of a **lawfully existing lot** is less than the minimum **lot area** required by this By-law, that **lawful lot area** is the minimum **lot area** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

In the Residential Zone category, an addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulation 10.5.30.11(1) must comply with all other regulations of this By-law or be authorized by a Section 45 Planning Act minor variance.

(3) Vacant Lawfully Existing Lot

In the Residential Zone category, if a **lot** referred to in regulation 10.5.30.11(1) is vacant, a **detached house**, **duplex**, **triplex** or **fourplex** may be constructed on that **lot**, and the **detached house**, **duplex**, **triplex** or **fourplex** must comply with all other regulations of this By-law or be authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.5.30.20 Lot Frontage

(1) Designated Front Lot Line for Through Lots

Despite regulation 5.10.30.20(2), on a **through lot** in the Residential Zone category, any **lot line** separating the **lot** from a **street** may be selected as the **front lot line**, if:

- (A) the **lot line** is not separated from the **street** by a 0.3 metre reserve; and
- (B) the **lot line** abuts a **street** where an adjacent **lot** has its **front lot line** on the same **street**.

(2) Minimum Front Lot Line for a Residential Building

In the Residential Zone category, a **residential building** may not be erected on a **lot** that does not have a **front lot line** of at least 3.5 metres, unless the **lot**:

- (A) abuts a **lane** with a minimum width of 6.0 metres; and
- (B) has a minimum of 3.5 metres of the **rear lot line** abutting the **lane**.

10.5.30.21 Lot Frontage Exemptions

(1) Permitted Lot Frontage for Lawfully Existing Lots

In the Residential Zone category, if the **lawful lot frontage** of a **lawfully existing lot** is less than the minimum **lot frontage** required by this By-law, that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building or structure** on a **lot** referred to in regulation 10.5.30.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

(3) Vacant Lawfully Existing Lot

If a **lot** referred to in regulation 10.5.30.21(1) is vacant, a **detached house, duplex, triplex or fourplex** may be constructed on that **lot**, and only if:

- (A) the **lot frontage** is at least 6.0 metres; and
- (B) the **detached house, duplex, triplex or fourplex** complies with all other requirements of this By-law or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.5.30.40 Lot Coverage

(1) Lot Coverage Exclusion for Permitted Encroachments

In the Residential Zone category, any part of a **building or structure** that is permitted to encroach into a required minimum **building setback** in Clause 10.5.40.60, is not included in the calculation of **lot coverage**.

(2) Parts of Platforms that are Not Permitted Encroachments

In the Residential Zone category, any part of a platform without **main walls**, such as a deck, porch, balcony or similar **structure** that does not encroach into a required minimum **building setback**, and any roof, canopy, awning or similar **structure** above the platform, is not included in the calculation of **lot coverage**, if:

- (A) it is attached to or less than 0.3 metres from a **building**; and
- (B) the **lot area** covered by these **structures** is no more than 5% of the **lot area** [By-law: PL130592 Mar_2018]

10.5.30.41 Lot Coverage Exemptions

(1) Permitted Lot Coverage for Lawfully Existing Buildings

In the Residential Zone category, if the portion of a **lot** covered by **lawfully existing buildings or structures** is greater than the permitted maximum **lot coverage**, the **lawful** portion of the **lot** covered by those **lawfully existing buildings or structures** is the maximum **lot coverage** for those **lawfully existing buildings or structures** on that **lot**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to **lawfully existing buildings or structures** referred to in regulation 10.5.30.41(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

10.5.40 Principal Building Requirements

10.5.40.1 General

(1) Application of this Article

The regulations in Article 10.5.40 apply to **buildings or structures** in the Residential Zone category, other than **ancillary buildings or structures** which are subject to Article 10.5.60.

(2) Building Requirements

Additional **building** requirements are in each zone in the Residential Zone category.

10.5.40.10 Height

(1) Determining the Height of a Building

In the Residential Zone category, the height of a **building** is the distance between the **established grade** and the elevation of the highest point of the **building**.

(2) Height of Specific Structures on a Building

In the Residential Zone category, the following **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by 1.5 metres:

- (A) antennae;
- (B) flagpoles;
- (C) parapets for a **green roof**;
- (D) satellite dishes; and
- (E) weather vanes.

(3) Height of Elements for Functional Operation of a Building

In the Residential Zone category, the following equipment and **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by 5.0 metres, subject to regulation 10.5.40.10(4):

- (A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment, except that skylights may only exceed the height by 1.0 metres; [By-law: PL130592 Mar_2018]
- (B) **structures** or parts of the **building** used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover the elements listed in (A) and (B) above, if the **building** has a height greater than 15.0 metres.

(4) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Residential Zone category, equipment, **structures** or parts of a **building** that exceed the permitted maximum height for a **building** in regulation 10.5.40.10(3), must comply with the following:

- (A) their total area may cover no more than 30% of the area of the roof, measured horizontally; and
- (B) if they are located within 6.0 metres of a **lot line** abutting a **street**, their total horizontal dimension, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**; and [By-law: 1676-2013]

(5) First Floor Location Requirement

(deleted by OMB Order, March 1, 2018 - PL 130592) [By-law: PL130592 Mar_2018]

10.5.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height for a **building**, that **lawful** height is the maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings - Height

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 10.5.40.11(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

(3) Alterations to the Roof of Lawfully Existing Buildings

Any alteration to the roof of a **lawfully existing building** referred to in regulation 10.5.40.11(1) may be constructed to the maximum height in regulation 10.5.40.11(1).

(4) Height of Main Walls for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful** height of the exterior portion of the **main walls** of a **lawfully existing building** or **structure** is greater than the permitted maximum height for each respective pair of the following **main walls**, that **lawful** height is the maximum height for the exterior portion of the respective pair of **main walls** for that **lawfully existing building** or **structure**:

- (A) the front and rear **main walls**; or
- (B) the side **main walls**.

(5) Additions to Lawfully Existing Buildings - Height of Main Walls

Any new **main wall** of an addition or extension to a **lawfully existing building** or **structure** referred to in regulation 10.5.40.11(4) is subject to the **main wall** heights in regulation 10.5.40.11(4).

(6) Height of First Floor Above Established Grade for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful** height of the **first floor** above **established grade** in a **lawfully existing building** is greater than the permitted maximum height of a first floor, that **lawful first floor** height is the maximum height for the **first floor** above **established grade** for that **lawfully existing building**.

(7) Additions to Lawfully Existing Buildings - Height of the First Floor Above Established Grade

Any addition or extension to a **lawfully existing building** referred to in regulation 10.5.40.11(6) may have a **first floor** above **established grade** up to the maximum height in regulation 10.5.40.11(6).

10.5.40.20 Building Length

(1) Portion of Building to which Building Length Applies

In the Residential Zone category, **building length** regulations apply to all **main walls** of a **building** above and below-ground, excluding the footings for the **building**.

(2) Exclusion from Building Length

In the Residential Zone category, any part of a **building** or **structure** permitted to encroach into a required minimum **building setback** in Clause 10.5.40.60 is excluded from the calculation of **building length**.

10.5.40.21 Building Length Exemptions

(1) Permitted Building Length for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful building length** of a **lawfully existing building** is greater than the permitted maximum **building length**, that **lawful building length** is the maximum **building length** for that **lawfully existing building**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** referred to in regulation 10.5.40.21(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

10.5.40.30 Building Depth

(1) Portion of Building to which Building Depth Applies

In the Residential Zone category, **building depth** regulations apply to all **main walls** of a **building** above and below-ground, excluding the footings for the **building**.

(2) Exclusion from Building Depth

In the Residential Zone category, any part of a **building** or **structure** permitted to encroach into a required minimum **building setback** in Clause 10.5.40.60 is excluded from the calculation of **building depth**.

10.5.40.31 Building Depth Exemptions

(1) Permitted Building Depth for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful building depth** of a **lawfully existing building** is greater than the permitted maximum **building depth**, that **lawful building depth** is the maximum **building depth** for that **lawfully existing building**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** referred to in regulation 10.5.40.31(1) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance.

10.5.40.40 Floor Area

(1) Inclusion of Attic Space as Gross Floor Area in a Residential Building Other Than an Apartment Building

In the Residential Zone category, the **gross floor area** of a **residential building**, other than an **apartment building**, includes the portion of the floor area in an attic that has a vertical clearance of more than 1.4 metres between the ceiling joists and the roof rafters, if at least 80% of the area has:

- (A) a vertical clearance of more than 2.0 metres; and
- (B) an area of at least 10.0 square metres. [By-law: PL130592 Mar_2018]

(2) Exclusion of Certain Floor Area in an Attic

If the floor area meets the conditions of regulation 10.5.40.40(1) and the area or portion of the area is used for mechanical equipment for the functional operation of the **building**, that area is not included in the **gross floor area** of the **building** if it is not more than 5% of the permitted maximum **gross floor area** of the **building** to a maximum of 20 square metres. [By-law: PL130592 Mar_2018]

(3) Gross Floor Area Calculations for a Residential Building Other Than an Apartment Building

In the Residential Zone category, the **gross floor area** of a **residential building**, other than an **apartment building**, may be reduced by:

- (A) the floor area of the **basement**; [By-law: PL130592 Mar_2018]
- (B) the area of a void in a floor if there is a vertical clearance of more than 4.5 metres between the top of the floor below the void and the ceiling directly above it, to a maximum of 10% of the permitted maximum **gross floor area** for the **building**;
- (C) the area for a maximum of one **parking space** per **dwelling unit** in the **building**; and [By-law: 89-2022]
- (D) in addition to (C) above, the area used for one additional **parking space** in a **detached house** on a **lot** with a **lot frontage** of more than 12.0 metres.

(4) Gross Floor Area Calculations for an Apartment Building

In the Residential Zone category, the **gross floor area** of an **apartment building** is reduced by the area in the **building** used for:

- (A) parking, loading and bicycle parking below **established grade**;
- (B) required **loading spaces** and required **bicycle parking spaces** at or above **established grade**;
- (C) storage rooms, washrooms, electrical, utility, mechanical and ventilation rooms in the **basement**;
- (D) shower and change facilities and **bicycle maintenance facilities** required by this By-law for required **bicycle parking spaces**; [By-law: 839-2022]
- (E) indoor **amenity space** required by this By-law;
- (F) elevator shafts;
- (G) garbage shafts;
- (H) mechanical penthouse; and
- (I) exit stairwells in the **building**.

(5) Floor Space Index Calculation

In the Residential Zone category, the floor space index:

- (A) for a **non-residential building**, is the result of the **gross floor area** of a **building** divided by the area of the **lot**;
- (B) for a **residential building**, other than an **apartment building**, is the result of the **gross floor area**, plus the area of an attic described in regulation 10.5.40.40(1) and subject to regulation 10.5.40.40(2) minus the areas listed in regulation 10.5.40.40(3), divided by the area of the **lot**; and
- (C) for an **apartment building**, is the result of the **gross floor area**, minus the areas of an **apartment building** listed in regulation 10.5.40.40(4), divided by the area of the **lot**.

10.5.40.41 Floor Area Exemptions

(1) Permitted Floor Space Index for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful gross floor area** of **lawfully existing buildings** on a **lot** results in a floor space index greater than the permitted maximum floor space index, the **lawful** floor space index resulting from those **lawfully existing buildings** on that **lot** is the maximum floor space index for those **lawfully existing buildings** on that **lot**.

10.5.40.50 Decks, Platforms and Amenities

(1) Interpretation of Platform Walls

In the Residential Zone category, the exterior sides of a platform, such as a deck, porch, balcony or similar **structure**, attached to or within 0.3 metres of a **building**, are not **main walls** if at least 50% of the exterior sides above the floor are open to the outside.

(2) Platforms in Relation to Building Setbacks

In the Residential Zone category, a platform without **main walls**, such as a deck, porch, balcony or similar **structure**, attached to or within 0.3 metres of a **building**, must comply with the required minimum **building setbacks** for the zone.

(3) Platforms at or Above the Second Storey of a Residential Building Other than an Apartment Building

In the Residential Zone category, the level of the floor of a platform, such as a deck or balcony, located at or above the second **storey** of a **residential building** other than an **apartment building**, may be no higher than 0.2 metres above the level of the floor of the **storey** from which it gains access.

[By-law: PL130592 Mar_2018]

(4) Platforms at or Below the First Storey of a Residential Building other than an Apartment Building

In the Residential Zone category, the level of the floor of a platform, such as a deck or balcony, permitted in accordance with (2) above and located at or below the first **storey** of a **residential building** other than an **apartment building**, may be no higher than 1.2 metres above the ground at any point below the platform, except where the platform is attached to or within 0.3 metres of:

- (A) a **front wall**, the floor of the platform may be no higher than 1.2 metres above **established grade**;
- (B) a side **main wall**, the floor of the platform may be no higher than the level of the floor from which it gains access; and
- (C) a rear **main wall**, any part of the platform floor located 2.5 metres or less from the rear **main wall** may be no higher than the level of the floor from which it gains access [By-law: PL130592 Mar_2018]

10.5.40.60 Permitted Encroachments

(1) Platforms

Despite regulation 10.5.40.50(2), in the Residential Zone category, a platform without **main walls**, such as a deck, porch, balcony or similar **structure**, attached to or less than 0.3 metres from a **building**, are subject to the following:

- (A) in a **front yard**, a platform with a floor no higher than the first **storey** of the **building** above **established grade**:
 - (i) may encroach into the required **front yard setback** the lesser of 2.5 metres or 50% of the required **front yard setback**, if it is no closer to a **side lot line** than the required **side yard setback**; and
 - (ii) there may be enclosed space below this platform;
- (B) in a **front yard**, a platform with a floor higher than the first **storey** of the **building** above **established grade** may encroach into the required **front yard setback** the lesser of 1.5 metres or 50% of the required **front yard setback**, if it is no closer to a **side lot line** than the required **side yard setback**;

- (C) in a **rear yard**, a platform with a floor no higher than the first **storey** of the **building** above **established grade** may encroach into the required **rear yard setback** the lesser of 2.5 metres or 50% of the required **rear yard setback**, if it is no closer to a **side lot line** than the greater of:
 - (i) 0.3 metres; or
 - (ii) a distance equal to the vertical distance between the highest part of the floor of the platform and the average elevation of the ground at the side of the platform;
- (D) in a **rear yard**, a platform with a floor higher than the first **storey** of the **building** above **established grade** may encroach into the required **rear yard setback** the lesser of 1.5 metres or 50% of the required **rear yard setback**, if it is no closer to a **side lot line** than the required **side yard setback** plus the vertical distance between the **first floor** of the **building** and the average elevation of the ground along the building's rear **main wall**;
- (E) in a **side yard**, a platform with a floor no higher than the first **storey** of the **building** above **established grade** may encroach into the required minimum **side yard setback** a maximum of 1.5 metres, if it is no closer to the **side lot line** than 0.3 metres; and
- (F) in a **side yard** a platform with a floor higher than the first **storey** of the **building** above **established grade**:
 - (i) may encroach into the required minimum **side yard setback** a maximum of 1.5 metres if the **side yard** abuts a **street**; and
 - (ii) may not encroach into a required minimum **side yard setback** if the **side yard** does not abut a **street**.

(2) Canopies and Awnings

In the Residential Zone category a canopy, awning or similar **structure**, with or without structural support, or a roof over a platform which complies with regulation 10.5.40.60(1), are subject to the following:

- (A) a roof, canopy, awning or similar **structure** above a platform meeting the requirements of regulation 10.5.40.60(1) may encroach into a required minimum **building setback** to the same extent as the platform it is covering; and
- (B) a canopy, awning or similar **structure** that is not covering a platform may encroach into a required minimum **building setback**:
 - (i) in a **front yard** or **rear yard**, the lesser of 2.5 metres or 50% of the required minimum **building setback**, if it is no closer to a **side lot line** than the required minimum **side yard setback**; or
 - (ii) in a **side yard**, a maximum of 1.5 metres, if it is no closer to the **side lot line** than 0.3 metres.

(3) Exterior Stairs, Access Ramp and Elevating Device

In the Residential Zone category, exterior stairs, pedestrian access ramp and elevating device providing access to a **building** or **structure** may encroach into a required minimum **building setback** as follows:

- (A) exterior stairs, if the stairs are:
 - (i) no longer than 1.5 horizontal units for each 1.0 vertical unit above the ground at the point where the stairs meet the **building** or **structure**;
 - (ii) no wider than 2.0 metres; and
 - (iii) no closer to a **lot line** than 0.6 metres;
- (B) an uncovered ramp, if the ramp is:
 - (i) no longer than 15 horizontal units for each 1.0 vertical unit above-ground at the point where the ramp meets the **building** or **structure**;
 - (ii) no wider than 1.5 metres for each sloped ramp segment; and
 - (iii) no closer to a **lot line** than 0.6 metres; and
- (C) an elevating device, if the elevating device:
 - (i) elevates no higher than the **first floor** of the **building**;
 - (ii) has a maximum area of 3.0 square metres; and
 - (iii) is no closer to a **lot line** than 0.6 metres.

(4) Exterior Main Wall Surface

In the Residential Zone category, cladding added to the original exterior surface of the **main wall** of a **building** may encroach into a required minimum **building setback** a maximum of 0.15 metres, if the added cladding is no closer to a **lot line** than 0.3 metres.

(5) Architectural Features

In the Residential Zone category, architectural features on a **building** must comply with the following:

- (A) a pilaster, decorative column, cornice, sill, belt course or other similar architectural feature may encroach into a required minimum **building setback** a maximum of 0.6 metres, if it is no closer to a **lot line** than 0.3 metres; and
- (B) a chimney breast may encroach into a required minimum **building setback** a maximum of 0.6 metres, if it:
 - (i) is no wider than 2.0 metres; and
 - (ii) is no closer to a **lot line** than 0.3 metres.

(6) Window Projections

In the Residential Zone category, a bay window, box window, or other window projection from a **main wall** of a **building**, which increases floor area or enclosed space and does not touch the ground, may encroach:

- (A) into a required minimum **front yard setback** or minimum **rear yard setback** a maximum of 0.75 metres, if the window projections in total do not occupy more than 65% of the width of the **front wall** or rear **main wall** at each **storey**; and
- (B) into a required minimum **side yard setback** a maximum of 0.6 metres, if the window projections:
 - (i) in total do not occupy more than 30% of the width of the side **main wall** at each **storey**; and
 - (ii) are no closer to the **side lot line** than 0.6 metres.

(7) Roof Projections

On a **building** in the Residential Zone category, roof projections must comply with the following:

- (A) a dormer projecting from the surface of a roof may not have any wall of the dormer closer to a **lot line** than the required minimum **building setback**; and
- (B) the eaves of a roof may encroach into a required minimum **building setback** a maximum of 0.9 metres, if they are no closer to a **lot line** than 0.3 metres.

(8) Equipment

In the Residential Zone category, the following wall mounted equipment on a **building** may encroach into required minimum **building setbacks** as follows, if the equipment is no closer to a **lot line** than 0.3 metres:

- (A) vents, pipes, or utility equipment, a maximum of 0.6 metres into a required minimum **rear yard setback** or minimum **side yard setback**;
- (B) satellite dish, a maximum of 0.9 metres into any required minimum **building setback**;
- (C) antenna, or a pole used to hold an antenna, a maximum of 0.9 metres into any required minimum **rear yard setback** or minimum **side yard setback**; and
- (D) air conditioner, a maximum of 0.9 metres:
 - (i) into a required minimum **rear yard setback**; and
 - (ii) into a required minimum **side yard setback** if it is not located above the first **storey**.

10.5.40.70 Setbacks

(1) Front Yard Setback - Averaging

In the Residential Zone category, if a **lot** is:

- (A) beside one **lot** in the Residential Zone category, and that abutting **lot** has a **building** fronting on the same **street** and that **building** is, in whole or in part, 15.0 metres or less from the subject **lot**, the required minimum **front yard setback** is the **front yard setback** of that **building** on the abutting **lot**; and

(B) between two abutting **lots** in the Residential Zone category, each with a **building** fronting on the same **street** and those **buildings** are both, in whole or in part, 15.0 metres or less from the subject **lot**, the required minimum **front yard setback** is the average of the **front yard setbacks** of those **buildings** on the abutting **lots**.

(2) Building or Structure to be Set Back from a Lane

A **building** or **structure** in the Residential Zone category may be no closer than 2.5 metres from the original centreline of a **lane**.

10.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the Residential Zone category, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful building setback** is the minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful building setback** is the minimum **rear yard setback** for that **lawfully existing building** or **structure**; and
- (C) a **side lot line**, that **lawful building setback** is the minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 10.5.40.71(1) must comply with the required minimum **building setbacks** or be authorized by a Section 45 Planning Act minor variance.

(3) Additions Above Lawfully Existing Buildings on Specified Lots

Despite regulation 10.5.40.71(2), on a **lot** with a **lot frontage** of 12.2 metres or less, the required minimum **building setback** for any addition or extension above a **lawfully existing building** or **structure** referred to in regulation 10.5.40.71(1) is the minimum **building setback** from the respective **lot line** permitted by regulation 10.5.40.71(1).

(4) Additions to the Rear or Side of Lawfully Existing Buildings on Specified Lots

Despite regulation 10.5.40.71(2), the required minimum **building setback** from a **side lot line** for any addition or extension to the rear or the side of a **lawfully existing building** or **structure** referred to in regulation 10.5.40.71(1), on a **lot** with a **lot frontage** of:

- (A) less than 9.0 metres, is the minimum **side yard setback** permitted by regulation 10.5.40.71(1); or
- (B) 9.0 metres to 12.2 metres, is the greater of:
 - (i) 50% of the required minimum **side yard setback**; or
 - (ii) the minimum **side yard setback** permitted by regulation 10.5.40.71(1).

(5) Permitted Setbacks for Lawfully Existing Buildings from a Lane

In the Residential Zone category, if the **lawful** distance of a **lawfully existing building** or **structure** from the original centreline of a **lane** is less than the minimum distance from the original centreline of the **lane** required by this By-law, that **lawful** distance is the minimum distance from the original centreline of the **lane** for that **lawfully existing building** or **structure**.

(6) Additions Above Lawfully Existing Buildings in Relation to a Lane

The minimum distance from the original centreline of a **lane** for any addition or extension above a **lawfully existing building** or **structure** referred to in regulation 10.5.40.71(5) is the minimum distance from the original centreline of the **lane** permitted by regulation 10.5.40.71(5).

10.5.50 Yards

10.5.50.10 Landscaping

(1) Front Yard Landscaping for Certain Types of Residential Buildings

In the Residential Zone category, on a **lot** with a **detached house, semi-detached house, duplex, triplex, fourplex or townhouse**, the following **front yard landscaping** regulations apply:

- (A) for **lots** with a **lot frontage** less than 6.0 metres, or a **townhouse dwelling unit** less than 6.0 metres wide, the **front yard**, excluding a permitted **driveway** or permitted parking pad must be **landscaping**;
[By-law: 1429-2017]
- (B) for **lots** with a **lot frontage** of 6.0 metres to less than 15.0 metres, or a **townhouse dwelling unit** at least 6.0 metres wide, a minimum of 50% of the **front yard** must be **landscaping**;
- (C) for **lots** with a **lot frontage** of 15.0 metres or greater, a minimum of 60% of the **front yard** must be **landscaping**; and
- (D) a minimum of 75% of the **front yard landscaping** required in (A), (B), and (C) above, must be **soft landscaping**, and if a **lot** does not have a permitted **driveway** in the **front yard**, a minimum of 75% of the **front yard** must be **soft landscaping**.
[By-law: 1675-2013]

(2) Side Yard Landscaping for Certain Types of Residential Buildings on Corner Lots

In the Residential Zone category, a **corner lot** with a **detached house, semi-detached house, duplex, triplex, fourplex or townhouse** must have:

- (A) a minimum of 60% of the **side yard** abutting a **street** for **landscaping**; and
- (B) a minimum of 75% of the **side yard landscaping** required in (A), above, must be **soft landscaping**.

(3) Rear Yard Soft Landscaping for Residential Buildings Other Than an Apartment Building

In the Residential Zone category, a **lot** with a **residential building**, other than an **apartment building**, must have:

- (A) a minimum of 50% of the **rear yard** for **soft landscaping**, if the **lot frontage** is greater than 6.0 metres; and
- (B) a minimum of 25% of the **rear yard** for **soft landscaping**, if the **lot frontage** is 6.0 metres or less.

(4) Landscaping Requirement for an Apartment Building

In the Residential Zone category, a **lot** with an **apartment building** must have:

- (A) a minimum of 50% of the area of the **lot** for **landscaping**; and
- (B) a minimum of 50% of the **landscaping** area required in (A), above, must be **soft landscaping**.

(5) Landscaping Requirement for an Apartment Building Abutting Another Residential Lot

In the Residential Zone category, a **lot** with an **apartment building** must have a minimum 1.5 metre wide strip of **soft landscaping** along any part of a **lot line** abutting another **lot** in the Residential Zone category.

(6) Landscaping Exclusion for Permitted Encroachments

In the Residential Zone category, the calculation of **landscaping** or **soft landscaping** regulation 10.5.50.10(1), (2), (3) and (4), excludes the area of the required minimum **building setback** covered by any part of a **building** or **structure** which is permitted to encroach into a required minimum **building setback** by Clause 10.5.40.60.

(7) Swimming Pools or Similar Ancillary Structures Containing Water Deemed to be Soft Landscaping for Specified Regulations

In the Residential Zone category, for the calculation of **soft landscaping** required by regulation 10.5.50.10(3) and (4), the area of **soft landscaping** includes the water surface area of outdoor swimming pools or other **ancillary structures** used to hold water, such as fountains or artificial ponds.

10.5.60 Ancillary Buildings and Structures

10.5.60.1 General

(1) Application of this Article

The regulations in Article 10.5.60 apply to **ancillary buildings** or **structures** in the Residential Zone category, if they are **ancillary to dwelling units** or **residential buildings**.

(2) Living Accommodation in Ancillary Buildings

An **ancillary building** in the Residential Zone category may not be used for living accommodation.

(3) Food or Sanitary Facilities in Ancillary Buildings

An **ancillary building** in the Residential Zone category may have:

- (A) food preparation facilities and sanitary facilities if the **ancillary building** is for indoor **amenity space** required by this By-law; or
- (B) either food preparation facilities or sanitary facilities, but not both, if the **ancillary building** is used for any purpose other than an indoor **amenity space** required by this By-law.

(4) Ancillary Building or Structure Construction Timing

In the Residential Zone category, no above-ground part of an **ancillary building** or **structure** may be erected prior to the erection of the **main walls** and completion of the roof of a **residential building** on the same **lot**.

10.5.60.10 Location

(1) Ancillary Buildings or Structures Not Permitted in Front Yard

An **ancillary building** or **structure** in the Residential Zone category may not be located in a **front yard**.

10.5.60.20 Setbacks

(1) Parts of an Ancillary Building or Structure to which a Required Building Setback Applies

In the Residential Zone category, required minimum **ancillary building setbacks** apply to all parts of an **ancillary building** or **structure** above-ground and below-ground, excluding footings.

(2) Ancillary Buildings or Structures - Rear Yard Setback

Subject to regulation 10.5.60.20(5), in the Residential Zone category:

- (A) if an **ancillary building** or **structure** is on a **through lot**, and a **residential building** on an adjacent **lot** fronts on the **street** that abuts the **rear lot line** of the **through lot**, the required minimum **rear yard setback** for the **ancillary building** or **structure** is equal to the required minimum **front yard setback** for the **residential building** on the adjacent **lot**;
- (B) if an **ancillary building** or **structure** is on a **lot** with a **lot depth** greater than 45 metres, and its height is greater than 2.5 metres or its floor area is greater than 10 square metres, the required minimum **rear yard setback** for the **ancillary building** or **structure** is equal to half the height of the **ancillary building** or **structure**; and
- (C) in cases other than those set out in (A) or (B) above, the required minimum **rear yard setback** for **ancillary buildings** or **structures** is 0.3 metres.

(3) Ancillary Buildings or Structures - Side Yard Setback

Subject to regulations 10.5.60.20(6) and (7), in the Residential Zone category, the required minimum **side yard setback** for an **ancillary building** or **structure**:

- (A) in a **side yard**, is the required minimum **side yard setback** for the **residential building** on the **lot**;
- (B) in a **rear yard** and less than 1.8 metres from the **residential building** on the **lot**, is the same as the required minimum **side yard setback** for the **residential building**; and
- (C) in a **rear yard** and 1.8 metres or more from the **residential building** on the **lot**, is as follows:
 - (i) if it is on a **corner lot**, and a **residential building** on an adjacent **lot** fronts on the **street** that abuts the **side lot line** of the **corner lot**, the **ancillary building** or **structure** must be set back from the **side lot line** that abuts the **street** a distance equal to the required minimum **front yard setback** for the **residential building** on the adjacent **lot**;
 - (ii) if it is on a **lot** with a required minimum **lot frontage** of 21.0 metres or more, and its height is greater than 2.5 metres or its floor area, is greater than 10 square metres, the required minimum **side yard setback** is equal to half the height of the **ancillary building** or **structure**; and

- (iii) in cases other than those set out in (i) and (ii) above, the required minimum **side yard setback** is 0.3 metres.

(4) Ancillary Building or Structure - Setback from a Lane

Despite regulations 10.5.60.20(2), (3) and (5) to (11), an **ancillary building** or **structure** in the Residential Zone category may be no closer than 2.5 metres from the original centreline of a **lane**.

(5) Detached Private Garages - Rear Yard Setback

In the Residential Zone category, the required minimum **rear yard setback** for an **ancillary building** or **structure** containing a **parking space** must comply with regulation 10.5.60.20(2), except:

- (A) if the **rear lot line** abuts a **lane** and **vehicle** access to the **parking space** in the **ancillary building** is from the **lane**, the required minimum **rear yard setback** is 1.0 metres, subject to regulation 10.5.60.20(4); and
- (B) if it is on a **through lot**, and **vehicle** access is from the **street** abutting the **rear lot line**, the required minimum **rear yard setback** is the greater of:
 - (i) the required minimum **front yard setback** for a **residential building** on the adjacent **lot** that fronts on the same **street** that the **rear lot line** abuts; or
 - (ii) 6.0 metres.

(6) Detached Private Garages - Side Yard Setback

In the Residential Zone category, the required minimum **side yard setback** for an **ancillary building** or **structure** containing a **parking space** must comply with regulation 10.5.60.20(3), except:

- (A) if a **side lot line** abuts a **lane**, and **vehicle** access to the **parking space** is from the **lane**, the required minimum **building setback** from that **side lot line** is 1.0 metres, subject to regulation 10.5.60.20(4); and
- (B) if it is on a **corner lot**, and **vehicle** access is from the **street** abutting the **side lot line**, the required minimum **side yard setback** is 6.0 metres.

(7) Detached Private Garages Situated on More than One Lot

Despite regulation 10.5.60.20(3) and (6), if an **ancillary building** or **structure** contains **parking spaces** for **dwelling units** on abutting **lots** in the Residential Zone category, it may be located on the common **side lot line**. [By-law: 89-2022]

(8) Swimming Pools or Similar Ancillary Structures Containing Water - Rear Yard Setback

Despite regulation 10.5.60.20(2), in the Residential Zone category, the required minimum **rear yard setback** for an outdoor swimming pool or other **ancillary structure** used to hold water, such as a fountain or artificial pond, is as follows:

- (A) on a **lot** with a **residential building** other than an **apartment building**:
 - (i) 25.0 metres, if it is a **through lot** and if an adjacent **lot** fronts on the **street** abutting the **rear lot line** of the **through lot**;
 - (ii) 3.0 metres, if it is a **corner lot** and if an adjacent **lot** fronts on the **street** abutting the **side lot line** of the **corner lot**;
 - (iii) 1.2 metres in all other cases; and
 - (iv) no minimum **rear yard setback** is required if the water surface area is 1.0 square metres or less; and
- (B) on a **lot** with an **apartment building**:
 - (i) 7.5 metres, if it is a **through lot**;
 - (ii) 4.5 metres in all other cases; and
 - (iii) no minimum **rear yard setback** is required if the water surface area is 3.0 square metres or less.

(9) Swimming Pools or Similar Ancillary Structures Containing Water - Side Yard Setback

Despite regulation 10.5.60.20(3), in the Residential Zone category, the required minimum **side yard setback** for an outdoor swimming pool or other **ancillary structure** used to hold water, such as a fountain or artificial pond, is as follows:

- (A) on a **lot** with a **residential building** other than an **apartment building**:
- (i) the greater of 1.2 metres or the **side yard setback** required by regulation 10.5.60.20(3);
 - (ii) if it is a **corner lot**, the required minimum **side yard setback** for the **residential building**, plus 1.5 metres, from the **side lot line** abutting a **street**; and
 - (iii) no minimum **side yard setback** is required if the water surface area is 1.0 square metres or less; and
- (B) on a **lot** with an **apartment building**:
- (i) 4.5 metres;
 - (ii) if it is a **corner lot**, 7.5 metres from the **side lot line** abutting a **street**; and
 - (iii) no minimum **side yard setback** is required if the water surface area is 3.0 square metres or less.
- (10) Ground Mounted Heating or Air-Conditioning Devices - Front Yard Setbacks and Side Yard Setbacks
In the Residential Zone category, for a heating or air-conditioning device that is mounted on the ground:
- (A) despite regulation 10.5.60.10(1), the device may be located in a **front yard**, if it is at least 6.0 metres from the **front lot line**; and
 - (B) despite regulation 10.5.60.20(3)(A), the device may be in a **side yard**, if it is no closer to the **side lot line** than the lesser of:
 - (i) 0.9 metres; or
 - (ii) the required minimum **side yard setback** for the **residential building** on the **lot**.
- (11) Open Platforms - Rear Yard Setbacks and Side Yard Setbacks
Despite regulation 10.5.60.20(2) and (3), in the Residential Zone category, the required minimum **rear yard setback** and **side yard setback** for a platform, such as a deck or similar **structure**, with a minimum of 50% of the total area of its exterior sides above the platform's floor open to the outside, and that is located no closer to the **residential building** on the **lot** than 0.3 metres, is the greater of:
- (A) 0.3 metres; or
 - (B) a distance equal to the highest vertical distance between any part of the floor of the platform and the ground below it.

10.5.60.30 Separation

- (1) Minimum Separation Between Residential Buildings and Ancillary Buildings or Structures of a Certain Size
In the Residential Zone category, an **ancillary building** or **structure** with a height greater than 2.5 metres, or a **gross floor area** greater than 10 square metres, must be at least 1.8 metres from a **residential building** on the same **lot**.
- (2) Maximum Separation Between Residential Buildings and Ground Mounted Heating or Air-Conditioning Devices in a Rear Yard
A heating or air-conditioning device that is mounted on the ground in the **rear yard** of a **lot** in the Residential Zone category may be no more than 2.0 metres from the rear **main wall** of the **residential building**.

10.5.60.40 Height

- (1) Determining the Height of Ancillary Buildings or Structures
In the Residential Zone category, the height of an **ancillary building** or **structure** is the distance between **average grade** and the elevation of the highest point of the **ancillary building** or **structure**.
- (2) Maximum Height of Ancillary Buildings or Structures
The permitted maximum height of an **ancillary building** or **structure** in the Residential Zone category is:
- (A) 2.5 metres, if the **ancillary building** or **structure** is located less than 1.8 metres from the **residential building** on the **lot**; and

(B) 4.0 metres in all other cases.

(3) Maximum Storeys for Ancillary Buildings or Structures

An **ancillary building** or **structure** in the Residential Zone category may not have more than one **storey**.

(4) Entrances to Ancillary Buildings or Structures

The permitted maximum height of the top of an entrance into an **ancillary building** or **structure** in the Residential Zone category is 2.5 metres above the average elevation of the ground along the entrance to the **ancillary building** or **structure**.

(5) Height Restrictions for Platforms

In the Residential Zone category, a platform, such as a deck or similar **structure**, other than a **green roof**, may not be:

- (A) located on top of any **ancillary building**; and
- (B) attached to an **ancillary building** or **structure** containing a **parking space**, if the platform is more than 1.2 metres above the ground at any point below the platform.

10.5.60.50 Floor Area

(1) Exclusion from Floor Space Index

In the Residential Zone category, the **gross floor area** of **ancillary buildings** is not included for the purpose of calculating the total **gross floor area** and floor space index for a **lot**.

(2) Maximum Floor Area of Ancillary Buildings or Structures

The total floor area of all **ancillary buildings** or **structures** on a **lot** in the Residential Zone category, other than an outdoor swimming pool or other **structure** used to hold water, must not be greater than:

- (A) 60.0 square metres for a **lot** with a **lot frontage** of 12.0 metres or more; and
- (B) 40.0 square metres in all other cases.

(3) Maximum Floor Area of an Ancillary Building or Structure Close to a Residential Building on the Same Lot

In the Residential Zone category, the permitted maximum floor area of an **ancillary building** or **structure** located less than 1.8 metres from a **residential building** on the **lot** is 10.0 square metres.

10.5.60.60 Permitted Encroachments

(1) Roof Projections for Ancillary Buildings

In the Residential Zone category, the eaves of a roof on an **ancillary building** may encroach into the required minimum **building setback** in Clause 10.5.60.20 a maximum of 0.3 metres, if the eaves are no closer to a **lot line** than 0.15 metres.

10.5.60.70 Lot Coverage

(1) Lot Coverage Requirement for Ancillary Buildings and Structures

An **ancillary building** or **structure** on a **lot** in the Residential Zone category, other than the water surface area of an outdoor swimming pool or other **ancillary structure** used to hold water, such as fountains or artificial ponds:

- (A) is included in the overall calculation of **lot coverage**; and
- (B) the area of the **lot** covered by all **ancillary buildings** and **structures** may not exceed 10% of the **lot area**.

(2) Lot Coverage Requirement for Swimming Pools or Similar Ancillary Structures Containing Water

In the Residential Zone category, the water surface area of an outdoor swimming pool or other **structure** used to hold water, such as fountains or artificial ponds:

- (A) is not included in the calculation of **lot coverage**; and

(B) the water surface area may not exceed 15% of the **lot area**.

10.5.75 Energy Regulations

10.5.75.1 General

(1) Renewable Energy or Cogeneration Energy Device

In the Residential Zone category, a device producing **renewable energy** or **cogeneration energy** may not be in a **front yard** or a **side yard** that abuts a **street**.

(2) Cogeneration Energy Device

In the Residential Zone category, a **cogeneration energy** device must be inside a permitted **building**.

(3) Geo-energy Device

In addition to regulation 10.5.75.1(1), in the Residential Zone category any above-ground part of a **geo-energy** device must comply with the requirements for:

(A) a **building** or **structure** on the **lot**; or

(B) an **ancillary building** or **structure**, if it is on a **lot** with a **residential building**.

(4) Solar Energy Device

In the Residential Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

(A) on a **building**:

(i) must comply with the required minimum **building setbacks** for a **building** on the **lot**; and

(ii) no part of the device may be higher than:

(a) 1.2 metres above the permitted maximum height for any **residential building** other than an **apartment building**; or

(b) 2.0 metres above the permitted maximum height for an **apartment building** or **non-residential building**; and

(B) ground mounted, must comply with the requirements for:

(i) a **building** or **structure** on the **lot**; and

(ii) an **ancillary building** or **structure**, if it is on a **lot** with a **residential building**.

(5) Wind Energy Device

In the Residential Zone category, a **wind energy** device must comply with the following:

(A) there may be no more than one **wind energy** device on a **lot**;

(B) all parts of a **wind energy** device on a **lot** must comply with the required minimum **building setbacks** for a **building** on the **lot**;

(C) on a **lot** with a **residential building** other than an **apartment building**, no part of a **wind energy** device may be higher than 2.5 metres above the permitted maximum height for the **building**; and

(D) on a **lot** with an **apartment building** or **non-residential building**, no part of a **wind energy** device may be higher than:

(i) 3.0 metres above the permitted maximum height for the **building** if:

(a) the permitted maximum height for the **building** is less than 24.0 metres; or

(b) the **lot** abuts another **lot** in the Residential Zone category; and

(ii) in all other cases, 5.0 metres above the permitted maximum height for the **building**.

10.5.80 Parking

10.5.80.1 General

(1) Use of Required Parking Space

A **parking space** required by this By-law for a use in the Residential Zone category must be available for the use for which it is required.

(2) Ancillary Outdoor Area for Parking

In the Residential Zone category, a **lot** with a **residential building** other than a **detached house**, **semi-detached house** or a **duplex**, may have an **ancillary** outdoor area used for the parking or storing of more than 3 **vehicles** if:

- (A) no portion of the **ancillary** outdoor area is closer to a **residential building** on the same **lot** than 6.0 metres;
- (B) the **ancillary** outdoor area is fenced, excluding the portions used for **vehicle** or pedestrian access;
- (C) the surface area used for the parking or storing of **vehicles** is no closer to a fence than 1.5 metres;
- (D) the **ancillary** outdoor area is no closer to a **lot line** that abuts a **street** than the greater of:
 - (i) 6.0 metres; or
 - (ii) the distance that a **residential building** on an adjoining **lot** is set back from its **lot line** abutting the same **street**; and
- (E) there is no more than one **ancillary building** for parking attendants and it:
 - (i) has a maximum height of 3.0 metres;
 - (ii) has a maximum floor area of 5.0 square metres; and
 - (iii) is no closer to any **lot line** abutting a **street** than 6.0 metres.

(3) Charging for Visitor Parking

(Deleted by LPAT Order PL130592, March 16, 2020) [By-law: LPAT PL130592 March 16, 2020]

10.5.80.10 Location

(1) Location of Required Parking Spaces

In the Residential Zone category, a **parking space** must be on the same **lot** as the use for which the **parking space** is required.

(2) Parking Space Location for Apartment Buildings

In the Residential Zone category, a minimum of 50 percent of the **parking spaces** for an **apartment building**, other than required visitor **parking spaces**, must be in a **building** or underground **structure**. [By-law: 89-2022]

(3) Street Yard Parking Space

In the Residential Zone category, a **parking space** may not be in a **front yard** or a **side yard** abutting a **street**. This regulation does not apply if a **parking space** in the **front yard** is permitted by the City of Toronto under the authority of the City of Toronto Act, 2006, or its predecessor.

(4) Parking in the Front Yard

In the Residential Zone category, for a **detached house**, a **semi-detached house**, or a **duplex**, and for an individual **townhouse dwelling unit** where a private **driveway** leads directly to the **dwelling unit**, **vehicles** may be parked on the private portion of the **driveway** leading to a **parking space**.

(5) Parking Space for a Secondary Suite

Despite regulation 10.5.80.10(3), in the Residential Zone category a **parking space** for a **secondary suite** may be in the **front yard** if it is on a **driveway**. [By-law: 89-2022]

(6) Corner Lot Parking Space Location

On a **corner lot** in the Residential Zone category, a **parking space** must be:

- (A) in a **building** or **structure**;
- (B) in a **rear yard**; or
- (C) in a **side yard** that does not abut a **street**.

(7) Rear Yard Parking Spaces

In the Residential Zone category, on a **lot** with a **detached house**, a **semi-detached house** or a **duplex**, a maximum of 2 **parking spaces** may be located outside in the **rear yard**.

(8) Parking Spaces for Storing Recreational Vehicles

A maximum of two **parking spaces** on a **lot** in the Residential Zone category may be used for recreational **vehicles**, if:

- (A) there is no more than one camper trailer or one boat trailer; and
- (B) the recreational **vehicles** are stored in:
 - (i) a **building**; or
 - (ii) a **parking space** in the area of the **rear yard** which is not required for **soft landscaping**.

(9) Commercial Vehicle Parking Restriction

A **parking space** in the Residential Zone category may be used for a commercial **vehicle**, if:

- (A) an owner or tenant of a **dwelling unit** on the **lot** is the owner or operator of the **vehicle**; and
- (B) it is within a wholly enclosed **building**.

(10) Commercial Vehicle Parking Not Permitted in Yards

A **parking space** located outside of a **building** in the Residential Zone category may not be used for:

- (A) commercially licensed **vehicles**;
- (B) construction **vehicles**;
- (C) dump trucks;
- (D) agricultural **vehicles**;
- (E) repair or towing **vehicles**;
- (F) tracked **vehicles**;
- (G) **vehicles** with a traction engine;
- (H) **vehicles** designed to run only on rails; and
- (I) **vehicles** equipped with more than six wheels, excluding spare wheels.

10.5.80.11 Location Exemptions

(1) Lawfully Existing Front Yard Parking Spaces

In the Residential Zone category, if a **lawfully existing building** has one or two **lawful parking spaces** on a **driveway** in the **front yard**, regulation 10.5.80.10(3) does not apply so long as those **parking spaces** remain.

(2) Side-by-Side Front Yard Parking Spaces on a Lawfully Existing Driveway

If a **lot** with a **lawfully existing detached house** or **lawfully existing semi-detached house** in the Residential Zone category has a **lawfully existing driveway** that is wider than permitted by regulation 10.5.100.1(1) and it leads to only one **parking space** behind the main front **main wall**, two **parking spaces** may be located side-by-side on that **driveway** in the **front yard** if the **driveway** width does not exceed 6.0 metres.

(3) Front Yard Parking Spaces Authorized Under the City of Toronto Act

If a **lawfully existing lot** in the Residential Zone category has a **lawfully existing building** and the required **parking spaces** cannot be located where required by this By-law, those **parking spaces** may be entirely or partially in the **front yard** of that **lot** if approval is given under the City of Toronto Act, 2006, as amended.

10.5.80.30 Separation

(1) Parking Space Separation from Apartment Building

In the Residential Zone category, a surface **parking space** must be at least 3.0 metres from all **main walls** of an **apartment building**.

10.5.80.40 Access to Parking Space

(1) Maximum Width of Garage Entrance in Front Wall on Certain Lots

In the Residential Zone category, for a **lot** with a **detached house** or a **semi-detached house**, if the required minimum **lot frontage** is less than 24.0 metres, the maximum combined width of all **vehicle** entrances through the front **main wall** of the **residential building** is 6.0 metres.

(2) Elevation of Garage Entrance in Certain Types of Residential Buildings

In the Residential Zone category, for a **detached house** or **semi-detached house**, and for an individual **townhouse dwelling unit** where an individual private **driveway** leads directly to the **dwelling unit**, the elevation of the lowest point of a **vehicle** entrance in a **main wall** of the **building** must be higher than the elevation of the centreline of the **driveway** at the point where it intersects a **lot line** abutting a **street**.

(3) Parking Space Access on a Lot

In the Residential Zone category, **vehicle** access to a **parking space** on a **lot** must:

- (A) be from the **lane**, if the **lot** abuts a **lane**;
- (B) be from a flanking **street** that is not a major **street** on the Policy Areas Overlay Map, if the **lot** does not abut a **lane**; and
- (C) in all other cases, may be from the **street** on which the **lot** fronts. [By-law: PL130592 Mar_2018]

10.5.100 Access to Lot

10.5.100.1 General

(1) Driveway Width in the Front Yard for Certain Residential Building Types

In the Residential Zone category, in addition to meeting the **landscaping** requirements in regulation 10.5.50.10, for a **detached house**, **semi-detached house**, or **duplex**, and for an individual **townhouse dwelling unit** if an individual private **driveway** leads directly to the **dwelling unit**, a **driveway** that is in the **front yard** or passes through the **front yard** may have the following dimensions in the **front yard**:

- (A) a minimum width of 2.0 metres;
- (B) for **lots** with a **lot frontage** less than 6.0 metres, or a **townhouse dwelling unit** less than 6.0 metres wide, a maximum width of 2.6 metres;
- (C) for **lots** with a **lot frontage** of 6.0 metres to 23.0 metres inclusive, or a **townhouse dwelling unit** at least 6.0 metres wide, a maximum **driveway** width the lesser of:
 - (i) 6.0 metres;
 - (ii) the cumulative width of side-by-side **parking spaces** behind the front **main wall**, but not in the **rear yard**; or
 - (iii) the width of a single **parking spaces** behind the front **main wall**, but not in the **rear yard**; or
 - (iv) 2.6 metres if all **parking spaces** are in the **rear yard**; and
- (D) for **lots** with a **lot frontage** greater than 23.0 metres, a maximum **driveway** width the lesser of:
 - (i) 9.0 metres;
 - (ii) the cumulative width of side-by-side **parking spaces** behind the front **main wall** if there is at least one **parking space** behind the front **main wall** but not in the **rear yard**; or
 - (iii) 2.6 metres if all **parking spaces** are in the **rear yard**.

(2) Driveway Width Other Than Through the Front Yard for Certain Residential Building Types

In the Residential Zone category, for a **detached house**, **semi-detached house**, or **duplex**, and for an individual **townhouse dwelling unit** if an individual private **driveway** leads directly to the **dwelling unit**, a **driveway** that is not in the **front yard** or does not pass through the **front yard** may have the following dimensions:

- (A) a minimum width of 2.0 metres; and
- (B) a maximum width the lesser of:
 - (i) 6.0 metres; or
 - (ii) the width of the **parking spaces**.

(3) Driveway Width for Triplex, Fourplex and Certain Types of Townhouse

In the Residential Zone category, for a **triplex** or **fourplex**, and for a **townhouse** if an individual private **driveway** does not lead directly to an individual **dwelling unit**, a **driveway** may have:

- (A) a minimum width of 2.0 metres for each lane; and [By-law: 420-2023]
- (B) a maximum total width of 6.0 metres.

(4) Driveway Width for Apartment Buildings

For an **apartment building** in the Residential Zone category, a **driveway** may have:

- (A) a minimum width of 3.0 metres for each lane; and [By-law: 420-2023]
- (B) a maximum total width of 6.0 metres.

(5) Driveway Access to Apartment Buildings

If an **apartment building** in the Residential Zone category has 25 **dwelling units** or more, an unobstructed **vehicle** access must be provided between the **street** and the principal pedestrian entrance to the **building** so that a **vehicle** can enter and leave the **lot** while driving forward in one continuous movement.

(6) Driveway with Two Points of Access to the Same Street

A **lot** in the Residential Zone category may have a **driveway** with two points of **vehicle** access to the same **street**, if:

- (A) the **lot** has a **lot frontage** greater than 18.0 metres; and
- (B) the **front yard landscaping** complies with Clause 10.5.50.10.

(7) Hammerhead Turnaround Driveway Permitted on Certain Lots

In the Residential Zone category, a **lot** with a **residential building**, other than an **apartment building** with 25 or more **dwelling units**, may have a **driveway** with a hammerhead turnaround, if the **lot** complies with the **front yard landscaping** requirements of Clause 10.5.50.10 and:

- (A) the **lot** has a **lot frontage** greater than 18.0 metres; or
- (B) **vehicle** access is from a **street** with a minimum right-of-way width of 27.0 metres.

(8) Hammerhead Turnaround Driveway Dimensions

In the Residential Zone category, a hammerhead turnaround must:

- (A) have a maximum width of 3.0 metres;
- (B) extend no more than 4.5 metres from one edge of the **driveway**; and
- (C) extend no more than 3.0 metres from each opposite edge of the **driveway**.

10.5.150 Waste

10.5.150.1 General

(1) Waste and Recyclable Materials Storage for an Apartment Building

For an **apartment building** in the Residential Zone category, all waste and **recyclable material** must be stored in a wholly enclosed **building**, if the **apartment building** is constructed pursuant to a building permit issued more than three years after May 9, 2013.

10.10 Residential Zone (R)

10.10.1 General

10.10.1.10 Interpretation

(1) Application of This Section

The regulations in Section 10.10 apply to all lands, uses, **buildings** and **structures** in the R zone.

10.10.20 Permitted Uses

10.10.20.10 Permitted Use

(1) Use - R Zone

The following uses are permitted in the R zone:

Dwelling Unit in a permitted **residential building** type in Clause 10.10.20.40.

Municipal Shelter

Park [By-law: 545-2019]

10.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions R Zone

The following uses are permitted in the R zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 10.10.20.100:

Ambulance Depot (1)

Cogeneration Energy (2)

Community Centre (3)

Day Nursery (4)

Fire Hall (1)

Garden Suite (20)

Group Home (5)

Home Occupation (6)

Laneway Suite (19)

Library (3)

Multi- tenant House (13)

Place of Worship (8)

Police Station (1)

Private Home Daycare (9)

Public Utility (10, 11)

Renewable Energy (2)

Retail Store (12)

Secondary Suite (14)

Seniors Community House (15)

Short- term Rental (18)

Tourist Home (16)

Transportation Use (17)

[By-law 1453-2017]

[By-law 545-2019]

[By-law 1092-2021]

[By-law: 101-2022] [By-law: 156-2023]

10.10.20.40 Permitted Building Types

(1) Permitted Residential Building Types - R Zone

In the R zone, a **dwelling unit** is permitted in the following **residential building** types:

- (A) **Detached House**;
- (B) **Semi-Detached House**;
- (C) **Townhouse**;
- (D) **Duplex**;
- (E) **Triplex**;
- (F) **Fourplex**; and
- (G) **Apartment Building**.

(2) Chapter 900 Exceptions

Despite regulations 900.1.10(3) and 900.1.10(4)(A), a **duplex**, **triplex** or **fourplex** is a permitted **residential building** type if it complies with the regulations for the R zone and all other requirements of this By-law, or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.10.20.41 Conversion of Lawfully Existing Buildings

(1) Conversion of Detached House to a Low-rise Apartment Building

In the R zone, a **detached house** may be converted to an **apartment building**, through the construction of additional **dwelling units**, and:

- (A) if the original **building** was **lawfully** constructed prior to December 15, 2023, it may continue to be considered as a **lawfully existing building** provided the additional **dwelling units** are contained entirely within the **lawfully existing building**, subject to regulations 10.10.20.41(3) and (4); and
- (B) for the purposes of Clauses 10.5.50.10 and 10.5.80.10, and Regulations 10.5.80.1(2), 10.10.40.10(2) and (11), 10.10.40.40(2), 10.10.80.1(1)(B), and 200.5.10.1(1), the **building** may continue to be considered as a **detached house** despite the **building** type definitions in Chapter 800. [By-law: 1313-2023]

(2) Conversion of a Portion of a Semi-Detached House to Multiple Dwelling Units

In the R Zone, a portion of a **semi-detached house** located on one **lot** may be converted to contain more than four **dwelling units** and may continue to be considered as a **semi-detached house** despite the **building** type definitions in Chapter 800, provided:

- (A) the original **building** was **lawfully** constructed prior to December 15, 2023 and the additional **dwelling units** are contained entirely within the **lawfully existing building**, subject to regulations 10.10.20.41(3) and (4);
- (B) The remaining portion of the **semi-detached house** located on an adjacent **lot** and within the same **semi-detached house** that is not subject to the conversion is considered to be located within the original **building** type for the purposes of applying the standards contained within this By-law;
- (C) For the purpose of Clause 10.5.40.40 and Regulation 10.10.40.30(1) the portion of a **semi-detached house** located on one **lot** that is converted to contain more than four **dwelling units** referenced in this regulation may be considered to be an **apartment building** despite the **building** type definitions in Chapter 800; and
- (D) If both **dwelling units** within a **building** originally constructed as a **semi-detached house** are converted in accordance with this regulation, the **building** is to be considered the original **building** type, subject to regulation 10.10.20.41(4). [By-law: 1313-2023]

(3) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** on a **lot** referred to in regulations 10.10.20.41(1) and (2) must comply with all other regulations in this By-law or be authorized by a Section 45 Planning Act minor variance. [By-law: 1313-2023]

(4) Definition of Lawfully and Lawfully Existing

For the purpose of regulations 10.10.20.41(1), (2), and (3), clauses 10.5.30.41, 10.5.40.11, 10.5.40.21, 10.5.40.31, 10.5.40.41, 10.5.40.71, 10.10.40.11, 10.10.40.61, 10.10.40.71, 10.10.40.81, and 10.10.80.200,

the words **lawful**, **lawfully** and **lawfully existing**, highlighted in bold type, in addition to the definitions provided in Zoning By-law 569-2013, Chapter 800 Definitions, includes:

- (A) **buildings, structures** or uses authorized or permitted on or before December 15, 2023; and
- (B) for which a building permit was **lawfully** issued before December 15, 2023. [By-law: 1313-2023]

(5) Number of Dwelling Units on a Lot

Regulations 10.5.1.10(3) and 10.10.40.1(3), do not apply to a **lawfully existing detached house** or portion of a **lawfully existing semi-detached house** converted in accordance with regulations 10.10.20.41(1) or (2). [By-law: 1313-2023]

(6) Secondary Suite – Not Permitted in a Converted Semi-Detached House

Despite regulations 150.10.20.1(1) and (2), a **secondary suite** may not be in the portion of a **semi-detached house** that has been converted to contain more than four **dwelling units** in accordance with regulations 10.10.20.41(2). [By-law: 1313-2023]

10.10.20.100 Conditions

(1) Ambulance Depot, Fire Hall or Police Station

In the R zone, an ambulance depot, a fire hall or a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(2) Cogeneration Energy Production or Renewable Energy Production

In the R Zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Community Centre or Library

In the R zone, a **community centre** or a library must be operated by, or on behalf of, the City of Toronto.

(4) Day Nursery

A **day nursery** in the R zone must comply with the specific use regulations in Section 150.45.

(5) Group Home

A **group home** in the R zone must comply with the specific use regulations in Section 150.15.

(6) Home Occupation

A **home occupation** in the R zone must comply with the specific use regulations in Section 150.5.

(8) Place of Worship

In the R zone, a **place of worship** must:

- (A) comply with the specific use regulations in Section 150.50;
- (B) be on a **lot** with a **lot frontage** of at least 30 metres; and
- (C) be in a **building** that is or was originally constructed as a **place of worship**.

(9) Private Home Daycare

A children's play area for a **private home daycare** in the R zone:

- (A) must be fenced; and
- (B) may not be located in the **front yard** or a **side yard** abutting a **street**.

(10) Public Utility

In the R zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(11) Public Utility

In the R zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the R zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(12) Retail Stores in Apartment Buildings

In the R zone, a **retail store** may be in an **apartment building** with 100 or more **dwelling units**, subject to the following:

- (A) there may be only one **retail store** in the **apartment building**;
- (B) it may not be above the first **storey** of the **apartment building**;
- (C) access to the **retail store** must be from within the **apartment building**, unless it is on a **lot** that has a **front lot line** or a **side lot line** abutting a major **street** on the Policy Areas Overlay Map;
- (D) there may be no outside display of goods; and
- (E) the **interior floor area** of the **retail store** may not exceed 25.0 square metres for the first 100 **dwelling units**, which may be increased by 5.0 square metres for each additional 100 **dwelling units** in excess of 100, to a maximum of 70.0 square metres.

(13) Multi-tenant House

A **multi-tenant house** in the R zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

(14) Secondary Suite

A **secondary suite** in the R zone must comply with the specific use regulations in Section 150.10.

(15) Seniors Community House

A **seniors community house** in the R zone must comply with the specific use regulations in Section 150.30.

(16) Tourist Home

In the R zone, a **tourist home**:

- (A) must be in a **detached house**, a **semi-detached house** or a **townhouse**;
- (B) may have a maximum of 2 **bed-sitting rooms** available for tourist accommodation; and
- (C) must not have **vehicle** access by a mutual **driveway**.

(17) Transportation Use

A **building** or **structure** on a **lot** in the R zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(18) Short-term Rental

A **short-term rental** in the R zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(19) Laneway Suite

A **laneway suite** in the R zone must comply with the specific use regulations in Section 150.8. [By-law: 810-2018]

(20) Garden Suite

A **garden suite** in the R zone must comply with the specific use regulations in Section 150.7. [By-law: 101-2022]

10.10.30 Lot Requirements

10.10.30.10 Lot Area

(1) Minimum Lot Area

In the R zone:

- (A) if a zone label on the Zoning By-law Map has the letter "a", the numerical value following the letter "a" is the required minimum **lot area**, in square metres; and
- (B) if the zone label does not have an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

10.10.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the R zone:

- (A) if a zone label on the Zoning By-law Map has the letter "f", the numerical value following the letter "f" is the required minimum **lot frontage**, in metres;
- (B) if the zone label does not have an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is 6.0 metres;
- (C) the required minimum **lot frontage** requirement cited in (A) or (B) above:
 - (i) for a **semi-detached house**, is the required minimum **lot frontage** for each **dwelling unit**; and
 - (ii) for a **townhouse** with every **dwelling unit** fronting directly on a **street**:
 - (a) is the required minimum **lot frontage** for each **dwelling unit**; and
 - (b) may be reduced by 1.0 metre for each **dwelling unit** that does not have an individual private **driveway** leading directly to the front of it; and
- (D) despite (A), (B) and (C) above, if a **lot** has a **townhouse** with one or more **dwelling units** not fronting directly on a **street**, the required minimum **lot frontage** is 30.0 metres.

10.10.40 Principal Building Requirements

10.10.40.1 General

(1) Application of this Article

The regulations in Article 10.10.40 apply to **buildings** or **structures** in the R zone, other than **ancillary buildings** or **structures** which are subject to Article 10.5.60 and Article 10.10.60.

(2) Number of Residential Buildings on a Lot

A maximum of one **residential building** is permitted on a **lot** in the R zone.

(3) Number of Dwelling Units on a Lot

If a zone label applying to a **lot** in the R zone on the Zoning By-law Map has the letter "u", the numerical value following the letter "u" is the maximum number of **dwelling units** permitted on the **lot**.

(4) Minimum Width of a Dwelling Unit

In the R zone, the required minimum width of a **dwelling unit** in a **townhouse** is:

- (A) 5.0 metres if the **dwelling unit** does not have an individual private **driveway** leading directly to the front of it; and
- (B) 6.0 metres in all other cases.

(5) Building Orientation to a Street - Buildings with Dwelling Units

In the R zone, a **building**, or an addition which is not attached above-ground to the original part of a **building**, is not permitted if:

- (A) it has **dwelling units** and is in the rear of another **building** or the original part of the same **building**;
or
- (B) it is in front of a **building**, or the original part of the same **building**, with **dwelling units**, so as to produce the condition of a **building** with **dwelling units** in the rear of another **building**.

10.10.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the R zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 10.0 metres; and
- (C) despite (A) above, the permitted maximum height for a **duplex**, **triplex**, or **fourplex** is the greater of:
 - (i) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
 - (ii) 10.0 metres. [By-law: 474-2023]

(2) Maximum Height of Specified Pairs of Main Walls

In the R zone, the permitted maximum height of the exterior portion of **main walls** for a **residential building**, other than an **apartment building**, is the higher of 7.0 metres above **established grade** or 2.5 metres less than the permitted maximum height in regulation 10.10.40.10(1), for either (A) or (B) below:

- (A) all side **main walls**, for at least 70 percent of the total width of each side **main wall**; or
- (B) all front **main walls** and all rear **main walls**, for at least:
 - (i) 60 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 12.0 metres or more;
 - (ii) 50 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** greater than 7.5 metres and less than 12.0 metres; and
 - (iii) 40 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 7.5 metres or less. [By-law: 1277-2022(OLT)]

(3) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a lot in the R zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map;
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation; and
- (C) the permitted maximum number of **storeys** in a **building** on a **lot** in regulation (A) does not apply to a **duplex**, **triplex** or **fourplex**. [By-law: 474-2023]

(4) Roof Slope Restriction for a Detached House

In the R zone, a roof above the second **storey** or higher on a **detached house** may not have a slope greater than 5.0 vertical units for every 3.0 horizontal units.

(5) Width of Dormers in a Roof Above a Second Storey or Higher

In the R zone, on a **residential building** with two or more **storeys**, the walls of a dormer are not **main walls** if:

- (A) the face of the dormer is in a roof directly above a part of a **main wall** that does not exceed the permitted maximum **main wall** height; and
- (B) the total width of the faces of the dormers in the roof described in (A) above is no greater than 40 percent of the width of the parts of the **main walls** that do not exceed the permitted maximum **main wall** height, measured at the level of the uppermost **storey** below the roof. [By-law: 1277-2022(OLT)]

(6) Height of Main Pedestrian Entrance

In the R zone, for a **detached house** or a **semi-detached house**, the elevation of the lowest point of a main pedestrian entrance through the **front wall** or a side **main wall** may be no higher than 1.2 metres above **established grade**.

[By-law: PL130592 Mar_2018]

(7) Addition to a Residential Building

In the R zone, all floor levels within an addition, extension or enlargement to the rear of a **residential building**, may not be higher than the uppermost floor level the **building** that is being added to, extended or enlarged.

(8) Height of Specific Structures on a Building

In the R zone, despite regulation 10.5.40.10(2), the following **structures** on the roof of a **building** with a height greater than 15.0 metres, may exceed the permitted maximum height for that **building** by 5.0 metres:

- (A) antennae;
- (B) flagpoles; and
- (C) satellite dishes.

(9) Height of Rooftop Amenity Space Safety and Wind Protection

In the R zone, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are:

- (A) on the roof of a **building** with a height greater than 15.0 metres; and
- (B) no closer than 2.0 metres from the interior face of any **main wall**.

(10) Limits on Elements for Functional Operation of a Building for Towers

In the R Zone:

- (A) Despite regulations 10.5.40.10 (3) and (4), equipment, **structures** or parts of a **building** listed in regulation 10.5.40.10 (3) located on the roof of the tower portion of a **building** may exceed the permitted maximum height for that **building** by 6.5 metres, if the total area of all equipment, **structures**, or parts on the roof of the tower portion of the **building** cover no more than 450 square metres, measured horizontally;
- (B) chimneys, pipes, and vents, may further exceed the permitted maximum height in (A) by 3.0 metres; and
- (C) For the purpose of regulation 10.10.40.10(10), a "tower" is the portions of a **building** which collectively enclose the entirety of a **storey** higher than 24.0 metres above the **established grade**, and where the maximum average **gross floor area** of any **storey** located above 24.0 metres does not exceed 750 square metres. [By-law: LPAT PL130592 March 6, 2020]

(11) Maximum Height of Main Walls for a Duplex, Triplex or Fourplex with a Flat or Shallow Roof

Subject to regulation 10.10.40.10(1), if a **duplex**, **triplex**, or **fourplex** in the R zone has a roof with a slope of less than 1.0 vertical units for every 10.0 horizontal units for more than 50 percent of the total horizontal roof area:

- (A) despite regulation 10.10.40.10(2) above, additional **main walls** are permitted to be located above the maximum height of all **main walls** permitted in regulation 10.10.40.10(2), provided all the additional front **main walls** and rear **main walls** located above the **main walls** permitted in regulation 10.10.40.10(2) are set back a minimum of 1.4 metres from the front **main walls** and rear **main walls** permitted in regulation 10.10.40.10(2). [By-law: 474-2023]

(12) Maximum Height of Main Walls for a Residential Building other than an Apartment Building with a Flat or Shallow Roof

Subject to regulation 10.10.40.10(1), if a **residential building**, other than an **apartment building**, in the R zone has a roof with a slope of less than 1.0 vertical units for every 10.0 horizontal units for more than 50 percent of the total horizontal roof area:

- (A) despite regulation 10.10.40.10(2) above, additional **main walls** are permitted to be located above the maximum height of all **main walls** permitted in regulation 10.10.40.10(2), provided all the additional front **main walls** and rear **main walls** located above the **main walls** permitted in regulation 10.10.40.10(2) are set back a minimum of 1.4 metres from the front **main walls** and rear **main walls** permitted in regulation 10.10.40.10(2). [By-law: 1313-2023]

10.10.40.11 Height Exemptions

(1) Alterations to the Roof of Lawfully Existing Buildings in the R Zone

In addition to regulation 10.5.40.11(3), if a **lawfully existing building** in the R zone is a **detached house**, the altered roof may not have a slope greater than 5.0 vertical units for every 3.0 horizontal units.

10.10.40.30 Building Depth

(1) Maximum Building Depth

In the R zone, the permitted maximum **building depth** is:

- (A) 17.0 metres for a **detached house, semi-detached house, duplex, triplex, fourplex, townhouse or apartment building**;
- (B) despite (A) above, the permitted maximum **building depth** for a **duplex, triplex or fourplex** is 19.0 metres if the **lot**:
 - (i) has a **lot depth** of 36.0 metres or greater and a **lot frontage** of less than 10.0 metres; or
 - (ii) has a **lot depth** of 40.0 metres or greater and a **lot frontage** of 10.0 metres or greater; and
- (C) despite (A) above, the permitted maximum **building depth** for an **apartment building** with a height of 13.0 metres or less is 19.0 metres if the **lot**:
 - (i) has a **lot depth** of 36.0 metres or greater and a **lot frontage** of less than 10.0 metres; or
 - (ii) has a **lot depth** of 40.0 metres or greater and a **lot frontage** of 10.0 metres or greater; and
 - (iii) no portion of a **side main wall** of the **apartment building** containing a "primary window" is set back less than 5.5 metres from a **side lot line**, other than a **side lot line** that abuts a **street**; and
 - (a) For the purposes of (iii) above, "primary window" means a window in a **dwelling unit** other than a window of a bedroom, kitchen, bathroom, hallway, or storage area. [By-law: 1313-2023]

10.10.40.40 Floor Area

(1) Floor Space Index

In the R zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label does not include a "d" value on the Zoning By-law Map, the permitted maximum floor space index is 0.6; and
- (C) the permitted maximum floor space index in regulations (A) and (B) above do not apply to a **duplex, triplex or fourplex**. [By-law: 474-2023]

(2) Additions to the Rear of Certain Residential Buildings

If a **lot** in the R zone has a permitted maximum floor space index of 0.6, and has a **detached house, a semi-detached house or a duplex**, erected before October 15, 1953, the **detached house, semi-detached house or duplex** may be enlarged by an addition to the rear of the **building** if:

- (A) the overall floor space index for the **lot**, including the addition, does not exceed a total of 0.69;
- (B) no part of the addition is closer to the **side lot line** than the shortest distance between the existing **side main wall** of the **building** and the same **side lot line**; and
- (C) any prior addition is at least 5 years old.

10.10.40.50 Decks, Platforms and Amenities

(1) Amenity Space for an Apartment Building

In the R zone, an **apartment building** with 20 or more **dwelling units** must provide **amenity space** at a minimum rate of 4.0 square metres for each **dwelling unit**, of which:

- (A) at least 2.0 square metres for each **dwelling unit** is indoor **amenity space**; [By-law: 1353-2015]
- (B) at least 40.0 square metres is outdoor **amenity space** in a location adjoining or directly accessible to the indoor **amenity space**; and
- (C) no more than 25% of the outdoor component may be a **green roof**.

(2) Interpretation of Platform Walls

In the R zone, in addition to regulation 10.5.40.50(1), the exterior sides of a **lawfully existing** platform that was **lawfully** enclosed in compliance with the former City of Toronto By-law 438-86, are not **main walls**.

10.10.40.61 Permitted Encroachments Exemptions

(1) Lawfully Existing Porch

Despite 10.5.40.50.(2) and 10.5.40.60(1)(A), in the R zone, a **lawfully existing** porch may be reconstructed or replaced, if the reconstruction or replacement is within the same outer limits of the **lawfully existing** porch and there is no enlargement of the porch. [By-law: 607-2015]

10.10.40.70 Setbacks

(1) Minimum Front Yard Setback

If regulation 10.5.40.70(1) does not apply, the required minimum **front yard setback** in the R zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the R zone is 7.5 metres.

(3) Minimum Side Yard Setback

In the R zone, the required minimum **side yard setback** is:

(A) 0.9 metres, for:

- (i) a **detached house**;
- (ii) a **semi-detached house**;
- (iii) a **duplex**;
- (iv) a **triplex**;
- (v) a **fourplex**; and
- (vi) a **townhouse** if all the **dwelling units** front directly on a **street**; and
- (vii) an **apartment building** with a height of 13.0 metres or less;

(B) 7.5 metres, for:

- (i) a **townhouse** if a **dwelling unit** does not front directly on a **street**;
- (ii) an **apartment building** with a height of more than 13.0 metres; and
- (iii) a **non-residential building**. [By-law: 1313-2023]

(4) Reduced Minimum Side Yard for Walls with No Windows or Doors on Specified Buildings

The required minimum **side yard setback** required in regulation 10.10.40.70(3)(A) and (B), may be reduced to 0.45 metres if there are no windows or doors in that side of the **building**, for the following **residential building** types in the R zone:

- (A) a **detached house**;
- (B) a **semi-detached house**;
- (C) a **townhouse** if all the **dwelling units** front directly on a **street**;
- (D) a **duplex**;
- (E) a **triplex**;
- (F) a **fourplex**; and
- (G) an **apartment building** with a height of 13.0 metres or less. [By-law: 1313-2023]

10.10.40.71 Setbacks Exemptions

(1) Setback Exemptions

Regulation 10.5.40.70(1) and Regulations 10.10.40.70 (1)(2)(3) and (4) do not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that setbacks are between 0 and 10.5 metres. [103-2016] [By-law: 1031-2014]

10.10.40.80 Separation

(1) Distance Between Main Walls of the Same Townhouse or Apartment Building

In the R zone, if a **townhouse** or an **apartment building** has **main walls** where a line projected outward at a right angle from one of the **main walls** intercepts another **main wall** of the same **building**, the required minimum above-ground separation distance between those **main walls** is:

- (A) 2.0 metres if there are no openings to **dwelling units** in those **main walls**;
- (B) 5.5 metres if there are no openings to **dwelling units** in one of those **main walls**; and
- (C) 11.0 metres if each **main wall** has an opening to a **dwelling unit**.

10.10.40.81 Separation Exemptions

(1) Permitted Separation Between Main Walls for Lawfully Existing Buildings

In the R zone, if the **lawful** separation distance between the **main walls** of **lawfully existing buildings** on the same **lot**, or between **main walls** of the same **lawfully existing building**, is less than the required minimum separation distance between **main walls** required by this By-law, that **lawful** separation distance is the minimum separation distance for those **lawful main walls**.

(2) Additions to Lawfully Existing Buildings

In the R zone, any addition or extension to a **lawfully existing building** referred to in regulation 10.10.40.81(1) must comply with the minimum separation distance between **main walls** in regulation 10.10.40.80(1) or be authorized by a Section 45 Planning Act minor variance.

10.10.60 Ancillary Buildings and Structures

10.10.60.1 General

(1) Application of the Article

The regulations in Article 10.10.60 apply to **ancillary buildings** or **structures** in the R zone, in addition to the requirements of Article 10.5.60, if they are **ancillary to dwelling units** or **residential buildings**.

10.10.60.20 Setbacks

(1) Rear Yard Setbacks and Side Yard Setbacks for Detached Private Garages

Despite regulation 10.5.60.20(2), (3), (5) and (6), in the R zone, the required minimum **rear yard setback** and **side yard setback** for an **ancillary building** or **structure** containing a **parking space** is:

- (A) 1.0 metres from a **rear lot line** or **side lot line** abutting a **street** or **lane**, subject to regulation 10.5.60.20(4); and
- (B) no minimum **building setback** is required from a **rear lot line** or **side lot line** that does not abut a **street** or **lane**.

10.10.60.70 Lot Coverage

(1) Lot Coverage Requirement for Ancillary Buildings and Structures

Despite regulation 10.5.60.70(1), in the R zone, the area of the **lot** covered by **ancillary buildings** and **structures** may not exceed 5% of the **lot area**, except for the following:

- (A) the water surface area of an outdoor swimming pool or other **ancillary structure** used to hold water, if they comply with regulation 10.5.60.70(2); and
- (B) **ancillary buildings** or **structures** containing **parking spaces**, to a maximum of one **parking space** per **dwelling unit** on the **lot**. [By-law: 89-2022]

10.10.80 Parking

10.10.80.1 General

(1) Conversion of a Parking Space in a Building to Habitable Space

A **parking space** located inside a **building** on a **lot** in the R zone, other than an **ancillary building**, may be converted to habitable space and no further **parking space** is required if :

- (A) the **lot** has:
 - (i) a **lot frontage** of 7.6 metres or less; or
 - (ii) a **lot frontage** greater than 7.6 metres, and the elevation of the floor of the **vehicle** entrance is below **established grade**;
- (B) the **parking space** is in a **detached house**, a **semi-detached house** or a **townhouse**; [By-law: 89-2022]
- (C) **vehicle** entrance to the **parking space** is in the front **main wall**; and
- (D) the **driveway** leading to the **vehicle** entrance in the **building** is removed, and any **front yard** depression in the ground is filled to **established grade**.

10.10.80.40 Access to Parking Space

(1) Garage Entrance in Front Wall Not Permitted on Certain Lots

Despite regulation 10.5.80.40(1), if a **lot** in the R zone has a **lot frontage** of 7.6 metres or less, a **vehicle** entrance through the front **main wall** of a **building**, other than an **ancillary building**, is not permitted.

(2) Parking Access to a Corner Lot or a Lot Abutting a Lane

In the R zone, on a **corner lot**, despite regulation 10.5.80.40(3), or on a **lot** abutting a **lane**, **vehicle** access to any **parking space** on the **lot** must be from the flanking **street** or from the **lane**.

10.10.80.200 Exemptions

(1) Exemption from Parking Space Requirements for Certain Lots

In the R zone, despite the requirements of Chapter 200, Parking Space Regulations, no **parking space** is required for a **lot** if access to a required **parking space** located in a **side yard** or **rear yard** cannot be provided from a **lane** or flanking **street**, and:

- (A) the **lot frontage** of the **lot** is 7.6 metres or less and:
 - (i) a deed to the **lot** was registered on or before July 2, 1996; and
 - (ii) a **detached house**, **semi-detached house**, **duplex**, **triplex**, or one unit of a **townhouse** is erected on the **lot** after July 2, 1996; or
- (B) a **lot** that had not been the subject of a previous severance is severed to create a maximum of three **lots** each with a maximum of one **dwelling unit** and a **lot frontage** of 7.6 metres or less. [By-law: PL130592 Mar_2018]

10.20 Residential Detached Zone (RD)

10.20.1 General

10.20.1.10 Interpretation

(1) Application of This Section

The regulations in Section 10.20 apply to all lands, uses, **buildings** and **structures** in the RD zone.

10.20.20 Permitted Uses

10.20.20.10 Permitted Use

(1) Use - RD Zone

The following uses are permitted in the RD zone:

Dwelling Unit in a permitted **residential building** type in Clause 10.20.20.40.

Municipal Shelter

Park [By-law: 545-2019]

10.20.20.20 Permitted Use - with Conditions

(1) Use with Conditions - RD Zone

The following uses are permitted in the RD zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 10.20.20.100:

Ambulance Depot (1)

Cogeneration Energy (2)

Community Centre (3)

Day Nursery (4)

Fire Hall (1)

Garden Suite (17)

Group Home (5)

Home Occupation (6)

Laneway Suite (16)

Library (3)

Multi-tenant House (18)

Place of Worship (8)

Police Station (1)

Private Home Daycare (9)

Public Utility (10, 11)

Renewable Energy (2)

Secondary Suite (12)

Seniors Community House (13)

Short-term Rental (15)

Transportation Use (14)

[By-law 1453-2017]

[By-law: 545-2019]

[By-law: 1210-2019]

[By-law: 101-2022] [By-law: 156-2023]

10.20.20.40 Permitted Building Types

(1) Permitted Residential Building Types - RD Zone

In the RD zone, a **dwelling unit** is permitted in the following **residential building** types:

- (A) **Detached House**;
- (B) **Duplex**;
- (C) **Triplex**; and
- (D) **Fourplex**. [By-law: 474-2023]

(2) Chapter 900 Exceptions

Despite regulations 900.1.10(3) and 900.1.10(4)(A), a **duplex, triplex or fourplex** is a permitted **residential building** type if it complies with the regulations for the RD zone and all other requirements of this By-law, or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.20.20.100 Conditions

(1) Ambulance Depot, Fire Hall or Police Station

In the RD zone, an ambulance depot, a fire hall or a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(2) Cogeneration Energy Production or Renewable Energy Production

In the RD zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Community Centre or Library

In the RD zone, a **community centre** or a library must:

- (A) be operated by, or on behalf of, the City of Toronto;
- (B) be on a **lot** with a **lot area** of 1500 square metres or less; and
- (C) have a **front lot line** or **side lot line** abutting:
 - (i) a major **street** on the Policy Areas Overlay Map, or
 - (ii) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80.0 metres of that intersection.

(4) Day Nursery

A **day nursery** in the RD zone must comply with the specific use regulations in Section 150.45.

(5) Group Home

A **group home** in the RD zone must comply with the specific use regulations in Section 150.15.

(6) Home Occupation

A **home occupation** in the RD zone must comply with the specific use regulations in Section 150.5.

(8) Place of Worship

In the RD zone, a **place of worship** must:

- (A) comply with the specific use regulations in Section 150.50;
- (B) be on a **lot** with:
 - (i) a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map;
 - (ii) a **lot area** of at least 2,000 square metres; and
 - (iii) a **lot frontage** of at least 30 metres; and
- (C) be in a **building** with no more than 2,000 square metres of **gross floor area**; and
- (D) a **lawfully existing place of worship** is exempt from the requirements of regulation 10.20.20.100(8) (B) and (C).

(9) Private Home Daycare

A children's play area for a **private home daycare** in the RD zone:

- (A) must be fenced; and
- (B) may not be located in the **front yard** or a **side yard** abutting a **street**.

(10) Public Utility

In the RD zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(11) Public Utility

In the RD zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the RD zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(12) Secondary Suite

A **secondary suite** in the RD zone must comply with the specific use regulations in Section 150.10.

(13) Seniors Community House

A **seniors community house** in the RD zone must comply with the specific use regulations in Section 150.30.

(14) Transportation Use

A **building** or **structure** on a **lot** in the RD zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(15) Short-term Rental

A **short-term rental** in the RD zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(16) Laneway Suite

A **laneway suite** in the RD zone must comply with the specific use regulations in Section 150.8. [By-law: 1210-2019]

(17) Garden Suite

A **garden suite** in the RD zone must comply with the specific use regulations in Section 150.7. [By-law: 101-2022]

(18) Multi-tenant House

A **multi-tenant house** in the RD zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

10.20.30 Lot Requirements

10.20.30.10 Lot Area

(1) Minimum Lot Area

In the RD zone:

- (A) if a zone label includes the letter "a", on the Zoning By-law Map, the numerical value following the letter "a" is the required minimum **lot area**, in square metres; and
- (B) if the zone label does not include an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

10.20.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the RD zone:

- (A) if a zone label includes the letter "f", as on the Zoning By-law Map, the numerical value following the letter "f" is the required minimum **lot frontage**, in metres; and
- (B) if the zone label does not include an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is 12.0 metres.

10.20.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the RD zone:

- (A) if a **lot** is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; and
- (B) if a **lot** is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

10.20.40 Principal Building Requirements

10.20.40.1 General

(1) Application of this Article

The regulations in Article 10.20.40 apply to **buildings** or **structures** in the RD zone, other than **ancillary buildings** or **structures** which are subject to Article 10.5.60.

(2) Number of Residential Buildings on a Lot

A maximum of one **residential building** is permitted on a **lot** in the RD zone.

(3) Building Orientation to a Street - Buildings with Dwelling Units

In the RD zone, a **building**, or an addition which is not attached above-ground to the original part of a **building**, is not permitted if:

- (A) it has **dwelling units** and is in the rear of another **building** or the original part of the same **building**;
or
- (B) it is in front of a **building**, or the original part of the same **building**, with **dwelling units**, so as to produce the condition of a **building** with **dwelling units** in the rear of another **building**.

10.20.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the RD zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 10.0 metres; and
- (C) despite (A) above, the permitted maximum height for a **duplex**, **triplex**, or **fourplex** is the greater of:
 - (i) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
 - (ii) 10.0 metres. [By-law: 474-2023]

(2) Maximum Height of Specified Pairs of Main Walls

In the RD zone, the permitted maximum height of the exterior portion of **main walls** for a permitted **residential building** is the higher of 7.0 metres above **established grade** or 2.5 metres less than the permitted maximum height in regulation 10.20.40.10(1), for either (A) or (B) below:

- (A) all side **main walls**, for at least 70 percent of the total width of each side **main wall**; or
- (B) all front **main walls** and all rear **main walls**, for at least:
 - (i) 60 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 12.0 metres or more;
 - (ii) 50 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** greater than 7.5 metres and less than 12.0 metres; and
 - (iii) 40 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 7.5 metres or less. [By-law: 474-2023]

(3) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the RD zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map;
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation; and
- (C) the permitted maximum number of **storeys** in a **building** on a **lot** in regulation (A) does not apply to a **duplex, triplex or fourplex**. [By-law: 474-2023]

(4) Maximum Height of Main Walls of a Residential Building with a Flat or Shallow Roof

Subject to regulation 10.20.40.10(1), if a permitted **residential building** in the RD zone has a roof with a slope of less than 1.0 vertical units for every 10.0 horizontal units for more than 50 percent of the total horizontal roof area:

- (A) despite regulation 10.20.40.10(2), the permitted maximum height of all **main walls** is the higher of 7.2 metres above **established grade** or 2.5 metres less than the permitted maximum height in regulation 10.20.40.10(1); and
- (B) despite (A) above, additional **main walls** are permitted to be located above the maximum height of all **main walls** permitted in (A) above, provided all the additional front **main walls** and rear **main walls** located above the **main walls** permitted in (A) above are set back a minimum of 1.4 metres from the front **main walls** and rear **main walls** permitted in (A). [By-law: 474-2023]

(5) Exemption for Parapet on a Residential Building with a Flat or Shallow Roof

A parapet on a **residential building** in the RD zone may exceed the permitted maximum **main wall** height in regulation 10.20.40.10(4) by a maximum of 0.3 metres. [By-law: 474-2023]

(6) Height of Main Pedestrian Entrance

In the RD zone, for a **residential building**, the elevation of the lowest point of a main pedestrian entrance through the **front wall** or a side **main wall** may be no higher than 1.2 metres above **established grade**. [By-law: 474-2023]

(7) Width of Dormers in a Roof Above a Second Storey or Higher

In the RD zone, on a **residential building** with two or more **storeys**, the walls of a dormer are not **main walls** if:

- (A) the face of the dormer is in a roof directly above a part of a **main wall** that does not exceed the permitted maximum **main wall** height; and
- (B) the total width of the faces of the dormers in the roof described in (A) above is no greater than 40 percent of the width of the parts of the **main walls** that do not exceed the permitted maximum **main wall** height, measured at the level of the uppermost **storey** below the roof. [By-law: 474-2023]

(8) Exclusion of Certain Floor Area Within an Attic Space as a Storey

In the RD zone, where a floor area meets the conditions set out in regulation 10.5.40.40(1), this space is not a **storey** if it is used for housing or maintaining mechanical equipment for the **building** and the floor area does not exceed 20 square metres.

10.20.40.11 Height Exemptions

(1) Alterations to the Roof of Lawfully Existing Buildings in an RD Zone

In addition to the requirements of regulation 10.5.40.11(3), if a **lawfully existing building** in the RD zone is a **residential building**, the altered roof may not have a slope less than 1.0 vertical units for every 4.0 horizontal units for more than 50 percent of the total horizontal roof area. [By-law: 474-2023]

10.20.40.20 Building Length

(1) Maximum Building Length if Required Lot Frontage is in Specified Range

In the RD zone with a required minimum **lot frontage** of 18.0 metres or less, the permitted maximum **building length** for a permitted **residential building** is 17.0 metres. [By-law: 474-2023]

(2) One Storey Extension to Building Length if Required Lot Frontage is in Specified Range

In the RD zone, despite regulation 10.20.40.20(1), on a **lot** with a required minimum **lot frontage** of more than 12.0 metres to 18.0 metres, a **detached house** may extend beyond the permitted maximum **building length** by a maximum of 2.0 metres, if the extended part:

- (A) has a maximum height of 5.0 metres and one **storey**;
- (B) is no wider than 50% of the width of the **building** at its widest point; and
- (C) is at least 3.0 metres from each **side lot line**.

(3) Maximum Building Length for a Duplex, Triplex or Fourplex if Lot Frontage and Lot Depth is in Specified Range

Despite regulation 10.20.40.20(1), in the RD zone, a **duplex**, **triplex** or **fourplex** may have a permitted maximum **building length** of 19.0 metres if the **lot**:

- (A) has a **lot depth** of 36.0 metres or greater and a **lot frontage** of less than 10.0 metres; or
- (B) has a **lot depth** of 40.0 metres or greater and a **lot frontage** of 10.0 metres or greater. [By-law: 474-2023]

10.20.40.30 Building Depth

(1) Maximum Building Depth if Required Lot Frontage is in Specified Range

In the RD zone with a required minimum **lot frontage** of 18.0 metres or less, the rear **main wall** of a **detached house**, not including a one **storey** extension that complies with regulation 10.20.40.20(2), may be no more than 19.0 metres from the required **front yard setback**.

(2) Maximum Building Depth for a Duplex, Triplex or Fourplex if Lot Frontage and Lot Depth is in Specified Range

In the RD zone, a **duplex**, **triplex** or **fourplex** may have a permitted maximum **building depth** of 19.0 metres if the **lot**:

- (A) has a **lot depth** of 36.0 metres or greater and a **lot frontage** of less than 10.0 metres; or
- (B) has a **lot depth** of 40.0 metres or greater and a **lot frontage** of 10.0 metres or greater. [By-law: 474-2023]

10.20.40.40 Floor Area

(1) Floor Space Index

In the RD zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label does not include a "d" value on the Zoning By-law Map, the permitted maximum floor space index is 0.6; and
- (C) the permitted maximum floor space index in regulations (A) and (B) above do not apply to a **duplex**, **triplex** or **fourplex**. [By-law: 474-2023]

(1) Floor Space Index

In the RD zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label on the Zoning By-law Map does not include a "d" value on the Zoning By-law Map, the floor space index is not limited by this regulation; and
- (C) the permitted maximum floor space index in regulation (A) above does not apply to a **duplex, triplex or fourplex**. [By-law: 66-2024 Enacted]

10.20.40.50 Decks, Platforms and Amenities

(1) Platforms at or Above the Second Storey of a Detached House

In the RD zone, a platform such as a deck or balcony with access from the second **storey** or above of a **detached house** must comply with the following:

- (A) there may be no more than a total of four platforms, and no more than one on each of the front, rear and each side of the **detached house**; and
- (B) the maximum area of each platform is 4.0 square metres.

(2) Interpretation of Platform Walls

In the RD zone, if an area is not subject to **lot coverage**, in addition to regulation 10.5.40.50(1) the exterior sides of a **lawfully existing** platform that was **lawfully** enclosed in compliance with the former City of Toronto By-law 438-86 are not **main walls**.

(3) Platforms at or Above the Second Storey of a Duplex, Triplex or Fourplex

In the RD zone, platforms such as a deck or balcony, with access from the second **storey** or above of a **duplex, triplex or fourplex** must comply with the following:

- (A) there may be no more than a total of 2 platforms for each **dwelling unit**, and no more than one on each of the front and rear sides of the **dwelling unit**; and
- (B) a platform permitted in (A) above for a **duplex, triplex or fourplex** on a **corner lot** may also be located on a **main wall** of a **dwelling unit** facing a **street**. [By-law: 474-2023]

10.20.40.70 Setbacks

(1) Minimum Front Yard Setback

If regulation 10.5.40.70(1) does not apply, the required minimum **front yard setback** in the RD zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the RD zone is the greater of:

- (A) 7.5 metres; or
- (B) 25% of the **lot depth**.

(3) Minimum Side Yard Setback

The required minimum **side yard setback** in the RD zone is:

- (A) 0.6 metres if the required minimum **lot frontage** is less than 6.0 metres;
- (B) 0.9 metres if the required minimum **lot frontage** is 6.0 metres to less than 12.0 metres;
- (C) 1.2 metres if the required minimum **lot frontage** is 12.0 metres to less than 15.0 metres;
- (D) 1.5 metres if the required minimum **lot frontage** is 15.0 metres to less than 18.0 metres;
- (E) 1.8 metres if the required minimum **lot frontage** is 18.0 metres to less than 24.0 metres;
- (F) 2.4 metres if the required minimum **lot frontage** is 24.0 metres to less than 30.0 metres; and
- (G) 3.0 metres if the required minimum **lot frontage** is 30.0 metres or greater.

(4) Shifting Minimum Side Yard if Required Lot Frontage is in Specified Range

Despite regulation 10.20.40.70(3), for a **lot** in the RD zone with a required minimum **lot frontage** of 12.0 metres to less than 18.0 metres, the required minimum **side yard setback** on one side of a permitted **residential building**, may be reduced by a maximum of 0.3 metres if the required minimum **side yard**

setback on the other side of the permitted **residential building** is increased by the same amount. [By-law: 474-2023]

(5) Larger Minimum Side Yard Beyond Specified Depth if Required Lot Frontage is Over 18.0 Metres

Despite regulation 10.20.40.70(3), for a **lot** in the RD zone with a required minimum **lot frontage** greater than 18.0 metres, the required minimum **side yard setback** is 7.5 metres for any portion of a **building** that is farther from the **front lot line** than the lesser of:

- (A) 17.0 metres from the front **main wall** of the **building**; or
- (B) 19.0 metres from the required **front yard setback**.

(6) Minimum Side Yard Abutting a Street for Specified Corner Lots

Despite regulation 10.20.40.70(3) and (4), for a **corner lot** in the RD zone, the required minimum **side yard setback** from a **side lot line** abutting a **street** is 3.0 metres, if:

- (A) the required minimum **lot frontage** for the **corner lot** is 12.0 metres or more; and
- (B) there is an adjacent **lot** fronting on the **street** abutting the **side lot line** of the **corner lot**.

10.40 Residential Semi-Detached Zone (RS)

10.40.1 General

10.40.1.10 Interpretation

(1) Application of This Section

The regulations in Section 10.40 apply to all lands, uses, **buildings** and **structures** in the RS zone.

10.40.20 Permitted Uses

10.40.20.10 Permitted Use

(1) Use - RS Zone

The following uses are permitted in the RS zone:

Dwelling Unit in a permitted **residential building** type in Clause 10.40.20.40.

Municipal Shelter

Park [By-law: 545-2019]

10.40.20.20 Permitted Use - with Conditions

(1) Use with Conditions - RS Zone

The following uses are permitted in the RS zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 10.40.20.100:

Ambulance Depot (1)

Cogeneration Energy (2)

Community Centre (3)

Day Nursery (4)

Fire Hall (1)

Garden Suite (17)

Group Home (5)

Home Occupation (6)

Laneway Suite (16)

Library (3)

Multi-tenant House (18)

Place of Worship (8)

Police Station (1)

Private Home Daycare (9)

Public Utility (10, 11)

Renewable Energy (2)

Secondary Suite (12)

Seniors Community House (13)

Short-term Rental (15)

Transportation Use (14)

[By-law 1453-2017]

[By-law: 545-2019]

[By-law: 1210-2019]

[By-law: 101-2022] [By-law: 156-2023]

10.40.20.40 Permitted Building Types

(1) Permitted Residential Building types - RS Zone

In the RS zone, a **dwelling unit** is permitted in the following **residential building** types:

- (A) **Detached House**;
- (B) **Semi-Detached House**;
- (C) **Duplex**;
- (D) **Triplex**; and
- (E) **Fourplex**. [By-law: 474-2023]

(2) Chapter 900 Exceptions

Despite regulations 900.1.10(3) and 900.1.10(4)(A), a **duplex**, **triplex** or **fourplex** is a permitted **residential building** type if it complies with the regulations for the RS zone and all other requirements of this By-law, or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.40.20.100 Conditions

(1) Ambulance Depot, Fire Hall or Police Station

In the RS zone, an ambulance depot, a fire hall or a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(2) Cogeneration Energy Production or Renewable Energy Production

In the RS zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Community Centre or Library

In the RS zone, a **community centre** or a library must:

- (A) be operated by, or on behalf of, the City of Toronto;
- (B) be on a **lot** with a **lot area** of 1500 square metres or less; and
- (C) have a **front lot line** or **side lot line** abutting:
 - (i) a major **street** on the Policy Areas Overlay Map; or
 - (ii) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80.0 metres of that intersection.

(4) Day Nursery

A **day nursery** in the RS zone must comply with the specific use regulations in Section 150.45.

(5) Group Home

A **group home** in the RS zone must comply with the specific use regulations in Section 150.15.

(6) Home Occupation

A **home occupation** in the RS zone must comply with the specific use regulations in Section 150.5.

(8) Place of Worship

In the RS zone, a **place of worship** must:

- (A) comply with the specific use regulations in Section 150.50;
- (B) be on a **lot** with:
 - (i) a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map;
 - (ii) a **lot area** of at least 2,000 square metres; and
 - (iii) a **lot frontage** of at least 30 metres;
- (C) be in a **building** with no more than 2,000 square metres of **gross floor area**; and
- (D) a **lawfully existing place of worship** is exempt from the requirements of regulation 10.40.20.100(8) (B) and (C).

(9) Private Home Daycare

A children's play area for a **private home daycare** in the RS zone:

- (A) must be fenced; and
- (B) may not be located in the **front yard** or a **side yard** abutting a **street**.

(10) Public Utility

In the RS zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(11) Public Utility

In the RS zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the RS zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(12) Secondary Suite

A **secondary suite** in the RS zone must comply with the specific use regulations in Section 150.10.

(13) Seniors Community House

A **seniors community house** in the RS zone must comply with the specific use regulations in Section 150.30.

(14) Transportation Use

A **building** or **structure** on a **lot** in the RS zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(15) Short-term Rental

A **short-term rental** in the RS zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(16) Laneway Suite

A **laneway suite** in the RS zone must comply with the specific use regulations in Section 150.8. [By-law: 1210-2019]

(17) Garden Suite

A **garden suite** in the RS zone must comply with the specific use regulations in Section 150.7. [By-law: 101-2022]

(18) Multi-tenant House

A **multi-tenant house** in the RS zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

10.40.30 Lot Requirements

10.40.30.10 Lot Area

(1) Minimum Lot Area

In the RS zone:

- (A) if a zone label includes the letter "a", on the Zoning By-law Map, the numerical value following the letter "a" is the required minimum **lot area**, in square metres;
- (B) despite (A) above, if a **semi-detached house** is on two **lots** in the RS zone, the required minimum **lot area** for each **lot** is 50% of the numerical value following the letter "a", in square metres; and
- (C) if the zone label does not include an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

10.40.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the RS zone:

- (A) if a zone label includes the letter "f", on the Zoning By-law Map, the numerical value following the letter "f" is the required minimum **lot frontage**, in metres;
- (B) if the zone label does not include an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is 15.0 metres; and
- (C) if a **semi-detached house** is on two **lots** in the RS zone, the required minimum **lot frontage** for each **lot** is 50% of the requirements cited in (A) and (B) above.

10.40.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the RS zone:

- (A) if a **lot** is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; and
- (B) if a **lot** is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

10.40.40 Principal Building Requirements

10.40.40.1 General

(1) Application of this Article

The regulations in Article 10.40.40 apply to **buildings** or **structures** in the RS zone, other than **ancillary buildings** or **structures** which are subject to Article 10.5.60.

(2) Number of Residential Buildings on a Lot

A maximum of one **residential building** is permitted on a **lot** in the RS zone.

10.40.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the RS zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 10.0 metres; and
- (C) despite (A) above, the permitted maximum height for a **duplex**, **triplex**, or **fourplex** is the greater of:
 - (i) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
 - (ii) 10.0 metres. [By-law: 474-2023]

(2) Maximum Height of Specified Pairs of Main Walls

In the RS zone, the permitted maximum height of the exterior portion of **main walls** for a permitted **residential building** is the higher of 7.0 metres above **established grade** or 2.5 metres less than the permitted maximum height in regulation 10.40.40.10(1), for either (A) or (B) below:

- (A) all side **main walls**, for at least 70 percent of the total width of each side **main wall**; or
- (B) all front **main walls** and all rear **main walls**, for at least:

- (i) 60 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 12.0 metres or more;
- (ii) 50 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** greater than 7.5 metres and less than 12.0 metres; and
- (iii) 40 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 7.5 metres or less. [By-law: 474-2023]

(3) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the RS zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map;
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation; and
- (C) the permitted maximum number of **storeys** in a **building** on a **lot** in regulation (A) does not apply to a **duplex, triplex or fourplex**. [By-law: 474-2023]

(4) Height of Main Pedestrian Entrance

In the RS zone, for a **residential building**, the elevation of the lowest point of a pedestrian entrance through the **front wall** or a side **main wall** may be no higher than 1.2 metres above **established grade**. [By-law: 474-2023]

(5) Width of Dormers in a Roof Above a Second Storey or Higher

In the RS zone, on a **residential building** with two or more **storeys**, the walls of a dormer are not **main walls** if:

- (A) the face of the dormer is in a roof directly above a part of a **main wall** that does not exceed the permitted maximum **main wall** height; and
- (B) the total width of the faces of the dormers in the roof described in (A) above is no greater than 40 percent of the width of the parts of the **main walls** that do not exceed the permitted maximum **main wall** height, measured at the level of the uppermost **storey** below the roof. [By-law: 474-2023]

(6) Maximum Height of Main Walls for a Residential Building with a Flat or Shallow Roof

Subject to regulation 10.40.40.10(1), if a **residential building** in the RS zone has a roof with a slope of less than 1.0 vertical units for every 10.0 horizontal units for more than 50 percent of the total horizontal roof area:

- (A) despite regulation 10.40.40.10(2) above, additional **main walls** are permitted to be located above the maximum height of all **main walls** permitted in regulation 10.40.40.10(2), provided all the additional front **main walls** and rear **main walls** located above the **main walls** permitted in regulation 10.40.40.10(2) are set back a minimum of 1.4 metres from the front **main walls** and rear **main walls** permitted in regulation 10.40.40.10(2). [By-law: 1313-2023]

10.40.40.20 Building Length

(1) Maximum Building Length

In the RS zone, the permitted maximum **building length** for a permitted **residential building** is 17.0 metres. [By-law: 474-2023]

(2) One Storey Extension to Building Length if Required Lot Frontage is More than 12.0 Metres

In the RS zone, despite regulation 10.40.40.20(1), on a **lot** with a required minimum **lot frontage** of more than 12.0 metres for a **detached house** or for an entire **semi-detached house**, a **detached house** or **semi-detached house** may extend beyond the permitted maximum **building length** by a maximum of 2.0 metres, if the extended part:

- (A) has a maximum height of 5.0 metres and one **storey**;
- (B) is no wider than 50% of the width of the **dwelling unit** at its widest point; and
- (C) is at least 3.0 metres from each **side lot line**, not including a **side lot line** extending between the two **dwelling units** of the **semi-detached house**.

(3) Maximum Building Length for a Duplex, Triplex or Fourplex if Lot Frontage and Lot Depth is in Specified Range

Despite regulation 10.40.40.20(1), in the RS zone, a **duplex, triplex** or **fourplex** may have a permitted maximum **building length** of 19.0 metres if the **lot**:

- (A) has a **lot depth** of 36.0 metres or greater and a **lot frontage** of less than 10.0 metres; or
- (B) has a **lot depth** of 40.0 metres or greater and a **lot frontage** of 10.0 metres or greater. [By-law: 474-2023]

10.40.40.30 Building Depth

(1) Maximum Building Depth

In the RS zone, the rear **main wall** of a **detached house** or **semi-detached house**, not including a one **storey** extension that complies with regulation 10.40.40.20(2), may be no more than 19.0 metres from the required minimum **front yard setback**.

(2) Maximum Building Depth for a Duplex, Triplex or Fourplex if Lot Frontage and Lot Depth is in Specified Range

In the RS zone, a **duplex, triplex** or **fourplex** may have a permitted maximum **building depth** of 19.0 metres if the **lot**:

- (A) has a **lot depth** of 36.0 metres or greater and a **lot frontage** of less than 10.0 metres; or
- (B) has a **lot depth** of 40.0 metres or greater and a **lot frontage** of 10.0 metres or greater. [By-law: 474-2023]

10.40.40.40 Floor Area

(1) Floor Space Index

In the RS zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label does not include a "d" value on the Zoning By-law Map, the permitted maximum floor space index is 0.6; and
- (C) the permitted maximum floor space index in regulations (A) and (B) above do not apply to a **duplex, triplex** or **fourplex**. [By-law: 474-2023]

(1) Floor Space Index

In the RS zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label on the Zoning By-law Map does not include a "d" value on the Zoning By-law Map, the floor space index is not limited by this regulation; and
- (C) the permitted maximum floor space index in regulation (A) above does not apply to a **duplex, triplex** or **fourplex**. [By-law: 66-2024 Enacted]

10.40.40.50 Decks, Platforms and Amenities

(1) Platforms at or Above the Second Storey of a Detached House

In the RS zone, platforms such as a deck or balcony, with access from the second **storey** or above of a **detached house** must comply with the following:

- (A) there may be no more than a total of four platforms, and no more than one on each of the front, rear and each side of the **detached house**; and
- (B) the maximum area of each platform is 4.0 square metres.

(2) Platforms at or Above the Second Storey of a Semi-Detached House

In the RS zone, platforms such as a deck or balcony, with access from the second **storey** or above of a **semi-detached house** must comply with the following:

- (A) there may be no more than a total of three platforms for each **dwelling unit**, and no more than one on each of the front, rear and side of the **dwelling unit**;
- (B) the maximum area of each platform is 4.0 square metres; and
- (C) a platform at the rear of the **dwelling unit** is at least 1.8 metres from the common wall dividing the **dwelling units**, or a projection of that common wall to a **lot line**.

(3) Platforms at or Above the Second Storey of a Duplex, Triplex or Fourplex

In the RS zone, platforms such as a deck or balcony, with access from the second **storey** or above of a **duplex, triplex or fourplex** must comply with the following:

- (A) there may be no more than a total of 2 platforms for each **dwelling unit**, and no more than one on each of the front and rear sides of the **dwelling unit**; and
- (B) a platform permitted in (A) above for a **duplex, triplex or fourplex** on a **corner lot** may also be located on a **main wall** of a **dwelling unit** facing a **street**. [By-law: 474-2023]

10.40.40.70 Setbacks

(1) Minimum Front Yard Setback

If regulation 10.5.40.70(1) does not apply, the required minimum **front yard setback** in the RS zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the RS zone is the greater of:

- (A) 7.5 metres; or
- (B) 25% of the **lot depth**.

(3) Minimum Side Yard Setback

The required minimum **side yard setback** in the RS zone is:

- (A) 0.6 metres, if the required minimum **lot frontage** for a permitted **residential building** is less than 6.0 metres;
- (B) 0.9 metres, if the required minimum **lot frontage** for a permitted **residential building** is 6.0 metres to less than 12.0 metres;
- (C) 1.2 metres, if the required minimum **lot frontage** for a permitted **residential building** is 12.0 metres to less than 15.0 metres;
- (D) 1.5 metres, if the required minimum **lot frontage** for a permitted **residential building** is 15.0 metres or more; and
- (E) 1.8 metres, for a **non-residential building**. [By-law: 474-2023]

10.60 Residential Townhouse Zone (RT)

10.60.1 General

10.60.1.10 Interpretation

(1) Application of This Section

The regulations in Section 10.60 apply to all lands, uses, **buildings** and **structures** in the RT zone.

10.60.20 Permitted Uses

10.60.20.10 Permitted Use

(1) Use - RT Zone

The following uses are permitted in the RT zone:

Dwelling Unit in a permitted **residential building** type in Clause 10.60.20.40.

Municipal Shelter

Park [By-law: 545-2019]

10.60.20.20 Permitted Use - with Conditions

(1) Use with Conditions - RT Zone

The following uses are permitted in the RT zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 10.60.20.100:

Ambulance Depot (1)

Cogeneration Energy (2)

Community Centre (3)

Day Nursery (4)

Fire Hall (1)

Garden Suite (17)

Group Home (5)

Home Occupation (6)

Laneway Suite (16)

Library (3)

Multi-Tenant House (18)

Place of Worship (8)

Police Station (1)

Private Home Daycare (9)

Public Utility (10, 11)

Renewable Energy (2)

Secondary Suite (12)

Seniors Community House (13)

Short-term Rental (15)

Transportation Use (14)

[By-law: 1453-2017]

[By-law: 545-2019]

[By-law: 1210-2019]

[By-law: 101-2022] [By-law: 156-2023]

10.60.20.40 Permitted Building Types

(1) Permitted Residential Building Types - RT Zone

In the RT zone, a **dwelling unit** is permitted in the following **residential building** types:

- (A) **Detached House**;
- (B) **Semi-Detached House**;
- (C) **Townhouse**;
- (D) **Duplex**;
- (E) **Triplex**; and
- (F) **Fourplex**. [By-law: 474-2023]

(2) Chapter 900 Exceptions

Despite regulations 900.1.10(3) and 900.1.10(4)(A), a **duplex, triplex or fourplex** is a permitted **residential building** type if it complies with the regulations for the RT zone and all other requirements of this By-law, or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.60.20.100 Conditions

(1) Ambulance Depot, Fire Hall or Police Station

In the RT zone, an ambulance depot, a fire hall or a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(2) Cogeneration Energy Production or Renewable Energy Production

In the RT zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Community Centre or Library

In the RT zone, a **community centre** or a library must be on a **lot** that has a **front lot line** or **side lot line** abutting:

- (A) a major **street** on the Policy Areas Overlay Map; or
- (B) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80 metres of that intersection.

(4) Day Nursery

A **day nursery** in the RT zone must comply with the specific use regulations in Section 150.45.

(5) Group Home

A **group home** in the RT zone must comply with the specific use regulations in Section 150.15.

(6) Home Occupation

A **home occupation** in the RT zone must comply with the specific use regulations in Section 150.5.

(8) Place of Worship

In the RT zone, a **place of worship** must:

- (A) comply with the specific use regulations in Section 150.50;
- (B) be on a **lot** with:
 - (i) a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map;
 - (ii) a **lot area** of at least 2,000 square metres; and
 - (iii) a **lot frontage** of at least 30 metres;
- (C) be in a **building** with no more than 2,500 square metres of **gross floor area**; and
- (D) a **lawfully existing place of worship** is exempt from the requirements of regulation 10.60.20.100(8) (B) and (C).

(9) Private Home Daycare

A children's play area for a **private home daycare** in the RT zone:

- (A) must be fenced; and
- (B) may not be located in the **front yard** or a **side yard** abutting a **street**.

(10) Public Utility

In the RT zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(11) Public Utility

In the RT zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the RT zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(12) Secondary Suite

A **secondary suite** in the RT zone must comply with the specific use regulations in Section 150.10.

(13) Seniors Community House

A **seniors community house** in the RT zone must comply with the specific use regulations in Section 150.30.

(14) Transportation Use

A **building** or **structure** on a **lot** in the RT zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(15) Short-term Rental

A **short-term rental** in the RT zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(16) Laneway Suite

A **laneway suite** in the RT zone must comply with the specific use regulations in Section 150.8. [By-law: 1210-2019]

(17) Garden Suite

A **garden suite** in the RT zone must comply with the specific use regulations in Section 150.7. [By-law: 101-2022]

(18) Multi-tenant House

A **multi-tenant house** in the RT zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

10.60.30 Lot Requirements

10.60.30.10 Lot Area

(1) Minimum Lot Area

In the RT zone:

- (A) if a zone label includes the letter "a", on the Zoning By-law Map, the numerical value following the letter "a" is the required minimum **lot area**, in square metres;
- (B) despite (A) above, if one **semi-detached house** is on two **lots** in the RT zone, the required minimum **lot area** for each **lot** is 50% of the numerical value following the letter "a", in square metres; and
- (C) if the zone label does not include an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

(2) Minimum Lot Area For Each Dwelling Unit in a Townhouse

If a zone label applying to a **lot** in the RT zone includes the letters "au", on the Zoning By-law Map, the numerical value following the letters "au" is the required minimum **lot area** for each **dwelling unit** in a **townhouse**.

10.60.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the RT zone:

- (A) if a zone label includes the letter "f", on the Zoning By-law Map, the numerical value following the letter "f" is the required minimum **lot frontage** for each **dwelling unit**, in metres, for a **lot** with:
 - (i) a **detached house**;
 - (ii) a **semi-detached house**; or
 - (iii) a **townhouse** with every **dwelling unit** fronting directly on a **street**;
- (B) if the zone label does not include an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is 6.0 metres for each **dwelling unit**, for a **lot** with:
 - (i) a **detached house**;
 - (ii) a **semi-detached house**; or
 - (iii) a **townhouse** with every **dwelling unit** fronting directly on a **street**;
- (C) the required minimum **lot frontage** for a **townhouse** in the RT zone cited in (A) or (B) above, may be reduced by 1.0 metres for each **dwelling unit** that does not have an individual private **driveway** leading directly to the front of it; and
- (D) despite (A), (B) and (C) above, the required minimum **lot frontage** is 30.0 metres if a **lot** has:
 - (i) a **townhouse** with one or more **dwelling units** not fronting directly on a **street**; or
 - (ii) a **non-residential building**.
- (E) despite (A), (B), (C) and (D) above, the required minimum **lot frontage** is 6.0 metres for a **lot** with:
 - (i) a **duplex**;
 - (ii) a **triplex**; or
 - (iii) a **fourplex**. [By-law: 474-2023]

10.60.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the RT zone:

- (A) if a **lot** is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; and
- (B) if a **lot** is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

10.60.40 Principal Building Requirements

10.60.40.1 General

(1) Application of this Article

The regulations in Article 10.60.40 apply to **buildings** or **structures** in the RT zone, other than **ancillary buildings** or **structures** which are subject to Article 10.5.60.

(2) Number of Dwelling Units on a Lot

If a zone label applying to a **lot** in the RT zone includes the letter "u", on the Zoning By-law Map, the numerical value following the letter "u" is the permitted maximum number of **dwelling units** on the **lot**.

(3) Minimum Width of a Dwelling Unit

In the RT zone, the required minimum width of a **dwelling unit** in a **townhouse** is:

- (A) 5.0 metres if the **dwelling unit** does not have an individual private **driveway** leading directly to the front of it; and
- (B) 6.0 metres in all other cases.

10.60.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the RT zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 10.0 metres; and
- (C) despite (A) above, the permitted maximum height for a **duplex**, **triplex**, or **fourplex** is the greater of:
 - (i) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
 - (ii) 10.0 metres. [By-law: 474-2023]

(2) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the RT zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map;
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation; and
- (C) the permitted maximum number of **storeys** in a **building** on a **lot** in regulation (A) does not apply to a **duplex**, **triplex** or **fourplex**. [By-law: 474-2023]

10.60.40.40 Floor Area

(1) Floor Space Index

In the RT zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label on the Zoning By-law Map does not include a "d" value on the Zoning By-law Map, the floor space index is not limited by this regulation; and
- (C) the permitted maximum floor space index in regulation (A) above does not apply to a **duplex**, **triplex** or **fourplex**. [By-law: 474-2023]

10.60.40.70 Setbacks

(1) Minimum Front Yard Setback

If regulation 10.5.40.70(1) does not apply, the required minimum **front yard setback** in the RT zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the RT zone is 7.5 metres.

(3) Minimum Side Yard Setback

In the RT zone:

- (A) the required minimum **side yard setback** is 7.5 metres; and
- (B) despite (A) above, the required minimum **side yard setback** is 0.9 metres for:

- (i) a **detached house**;
- (ii) a **semi-detached house**;
- (iii) a **duplex**;
- (iv) a **triplex**;
- (v) a **fourplex**; or
- (vi) a **townhouse**, if all the **dwelling units** front directly on a **street**. [By-law: 474-2023]

10.60.40.80 Separation

(1) Distance Between Main Walls of the Same Residential Building

In the RT zone, if a **residential building** has **main walls** where a line projected outward at a right angle from one of the **main walls** intercepts another **main wall** of the same **building**, the required minimum above-ground separation distance between those **main walls** is:

- (A) 5.5 metres if there are no openings to **dwelling units** in one or more of those **main walls**; and
- (B) 11.0 metres if each **main wall** has an opening to a **dwelling unit**. [By-law: 474-2023]

(2) Distance Between Residential Buildings on the Same Lot

In the RT zone, if two or more **residential buildings** are on the same **lot**, the required minimum above-ground separation distance between the **main walls** of the respective **buildings** is:

- (A) 5.5 metres if there are no openings to **dwelling units** in the front or rear **main wall** of one or more of the **buildings**; [By-law: PL130592 Mar_2018]
- (B) 11.0 metres if each front or rear **main wall** has an opening to a **dwelling unit**; and [By-law: PL130592 Mar_2018]
- (C) 2.4 metres between side **main walls** of two **residential buildings**. [By-law: PL130592 Mar_2018]

10.60.40.81 Separation Exemptions

(1) Permitted Separation Between Main Walls for Lawfully Existing Buildings

In the RT zone, if the **lawful** separation distance between the **main walls** of **lawfully existing buildings** on the same **lot**, or between **main walls** of the same **lawfully existing building**, is less than the required minimum separation distance between **main walls** required by this By-law, that **lawful** separation distance is the minimum separation distance for those **lawful main walls** of those **lawfully existing buildings**.

(2) Additions to Lawfully Existing Buildings

In the RT zone, any addition or extension to a **lawfully existing building** referred to in regulation 10.60.40.81(1) must comply with the required minimum separation distance between **main walls** in regulations 10.60.40.80(1) and (2) or be authorized by a Section 45 Planning Act minor variance.

10.80 Residential Multiple Zone (RM)

10.80.1 General

10.80.1.10 Interpretation

(1) Application of This Section

The regulations in Section 10.80 apply to all lands, uses, **buildings** and **structures** in the RM zone.

10.80.20 Permitted Uses

10.80.20.10 Permitted Use

(1) Use - RM Zone

The following uses are permitted in the RM zone:

Dwelling Unit in a permitted **residential building** type in Clause 10.80.20.40.

Municipal Shelter

Park [By-law: 545-2019]

10.80.20.20 Permitted Use - with Conditions

(1) Use with Conditions - RM Zone

The following uses are permitted in the RM zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 10.80.20.100:

Ambulance Depot (1)

Cogeneration Energy (2)

Community Centre (3)

Crisis Care Shelter (4)

Day Nursery (5)

Fire Hall (1)

Garden Suite (20)

Group Home (6)

Home Occupation (7)

Laneway Suite (19)

Library (3)

Multi-tenant House (14)

Nursing Home (8)

Place of Worship (9)

Police Station (1)

Private Home Daycare (10)

Public Utility (11, 12)

Renewable Energy (2)

Residential Care Home (6)

Respite Care Facility (13)

Retirement Home (8)

Secondary Suite (15)

Seniors Community House (16)

Short-term Rental (18)

Transportation Use (17)

[By-law: 1453-2017]

[By-law: 545-2019]

[By-law: 1210-2019]

[By-law: 101-2022] [By-law: 156-2023]

10.80.20.40 Permitted Building Types

(1) Permitted Residential Building Types - RM Zone

In the RM zone, a **dwelling unit** is permitted in the following **residential building** types:

- (A) **Detached House**;
- (B) **Semi-Detached House**;
- (C) **Duplex**, if the zone label on the Zoning By-law Map:
 - (i) does not include a "u" value; or
 - (ii) has a numerical value of 2 or greater following the letter "u" in the zone label;
- (D) **Triplex**, if the zone label on the Zoning By-law Map:
 - (i) does not include a "u" value; or
 - (ii) has a numerical value of 3 or greater following the letter "u" in the zone label;
- (E) **Fourplex**, if the zone label on the Zoning By-law Map:
 - (i) does not include a "u" value; or
 - (ii) has a numerical value of 4 or greater following the letter "u" in the zone label; and
- (F) **Apartment Building**, if the zone label on the Zoning By-law Map:
 - (i) does not include a "u" value; or
 - (ii) has a numerical value of 5 or greater following the letter "u" in the zone label.

(2) Chapter 900 Exceptions

Despite regulations 900.1.10(3) and 900.1.10(4)(A), a **duplex**, **triplex** or **fourplex** is a permitted **residential building** type if it complies with the regulations for the RM zone and all other requirements of this By-law, or is authorized by a Section 45 Planning Act minor variance. [By-law: 474-2023]

10.80.20.100 Conditions

(1) Ambulance Depot, Fire Hall or Police Station

In the RM zone, an ambulance depot, a fire hall or a police station must be on a **lot** that:

- (A) fronts on a major **street** on the Policy Areas Overlay Map; or
- (B) fronts on a **street** which intersects a major **street** on the Policy Areas Overlay Map, and is no more than 250 metres from that intersection.

(2) Cogeneration Energy Production or Renewable Energy Production

In the RM zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Community Centre or Library

In the RM zone, a **community centre** or a library must be on a **lot** that has a **front lot line** or **side lot line** abutting:

- (A) a major **street** on the Policy Areas Overlay Map; or
- (B) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80.0 metres of that intersection.

(4) Crisis Care Shelter

In the RM zone, a **crisis care shelter** must comply with the specific use regulations in Section 150.20. [By-law: 545-2019]

(5) Day Nursery

A **day nursery** in the RM zone must comply with the specific use regulations in Section 150.45.

(6) Group Home or Residential Care Home

In the RM zone, a **group home** or a **residential care home** must comply with the specific use regulations in Section 150.15.

(7) Home Occupation

A **home occupation** in the RM zone must comply with the specific use regulations in Section 150.5.

(8) Nursing Home or Retirement Home

In the RM zone, a **nursing home**, **retirement home** or a combination of these two uses, must be on a **lot** that has a **front lot line** or **side lot line** abutting:

- (A) a major **street** on the Policy Areas Overlay Map; or
- (B) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located, in whole or in part, within 80.0 metres of that intersection.

(9) Place of Worship

In the RM zone, a **place of worship** must:

- (A) comply with the specific use regulations in Section 150.50;
- (B) be on a **lot** with:
 - (i) a **front lot line** or **side lot line** abutting a major **street** on the Policy Areas Overlay Map;
 - (ii) a **lot area** of at least 2,000 square metres; and
 - (iii) a **lot frontage** of at least 30 metres;
- (C) be in a **building** with no more than 2,500 square metres of **gross floor area**; and
- (D) a **lawfully existing place of worship** is exempt from the requirements of regulation 10.80.20.100(9) (B) and (C).

(10) Private Home Daycare

A children's play area for a **private home daycare** in the RM zone:

- (A) must be fenced; and
- (B) may not be located in the **front yard** or a **side yard** abutting a **street**.

(11) Public Utility

In the RM zone, a **public utility** may not be:

- (A) a sewage treatment plant;
- (B) a water filtration plant; or
- (C) an above-ground water reservoir.

(12) Public Utility

In the RM zone, a **public utility** must be enclosed by walls and comply with the permitted maximum **lot coverage**, required minimum **building setbacks** and permitted maximum height for a **building** in the RM zone if it is:

- (A) a hydro electrical transformer station; or [By-law: OMB PL130592 February 7, 2017]
- (B) a natural gas regulator station.

(13) Respite Care Facility

In the RM zone, a **respite care facility** must be combined with a **nursing home** or **retirement home**.

(14) Multi-tenant House

A **multi-tenant house** in the RM zone must comply with the specific use regulations in Section 150.25. [By-law: 156-2023]

(15) Secondary Suite

A **secondary suite** in the RM zone must comply with the specific use regulations in Section 150.10.

(16) Seniors Community House

A **seniors community house** in the RM zone must comply with the specific use regulations in Section 150.30.

(17) Transportation Use

A **building** or **structure** on a **lot** in the RM zone and used as a **transportation use** must comply with all requirements for a **building** on that **lot**.

(18) Short-term Rental

A **short-term rental** in the RM zone must comply with the specific use regulations in Section 150.13. [By-law: 1453-2017]

(19) Laneway Suite

A **laneway suite** in the RM zone must comply with the specific use regulations in Section 150.8. [By-law: 1210-2019]

(20) Garden Suite

A **garden suite** in the RM zone must comply with the specific use regulations in Section 150.7. [By-law: 101-2022]

10.80.30 Lot Requirements

10.80.30.10 Lot Area

(1) Minimum Lot Area

In the RM zone:

- (A) if a zone label includes the letter "a", on the Zoning By-law Map, the numerical value following the letter "a" is the required minimum **lot area**, in square metres;
- (B) despite (A) above, if a **semi-detached house**, a **fourplex**, or an **apartment building** is on two **lots** in the RM zone, the required minimum **lot area** for each **lot** is 50% of the numerical value following the letter "a", in square metres; and
- (C) if the zone label does not include an "a" value on the Zoning By-law Map, the required minimum **lot area**, in square metres, is the required minimum **lot frontage** multiplied by 30 metres.

(2) Minimum Lot Area for Each Dwelling Unit in an Apartment Building

If a zone label applying to a **lot** in the RM zone includes the letters "au", on the Zoning By-law Map, the numerical value following the letters "au" is the required minimum **lot area**, in square metres, for each **dwelling unit** in an **apartment building**.

10.80.30.20 Lot Frontage

(1) Minimum Lot Frontage

In the RM zone:

- (A) if a zone label includes the letter "f", on the Zoning By-law Map, the numerical value following the letter "f" is the required minimum **lot frontage**, in metres;
- (B) if the zone label does not include an "f" value on the Zoning By-law Map, the required minimum **lot frontage** is:
 - (i) 12.0 metres for a **lot** with a **detached house**, and each **duplex**, **triplex** or **fourplex** on a **lot**;
 - (ii) 15.0 metres for a **lot** with an entire **semi-detached house**; and
 - (iii) 24.0 metres:
 - (a) for each **apartment building** on a **lot**, or
 - (b) for a **lot** with a **non-residential building**.
- (C) if a **semi-detached house**, a **fourplex** or an **apartment building** is on two **lots** in the RM zone, the required minimum **lot frontage** for each **lot** is 50 percent of the requirements cited in (A) and (B) above. [By-law: 474-2023]

10.80.30.40 Lot Coverage

(1) Maximum Lot Coverage

In the RM zone:

- (A) if a **lot** is in an area with a numerical value on the Lot Coverage Overlay Map, that numerical value is the permitted maximum **lot coverage**, as a percentage of the **lot area**; and
- (B) if a **lot** is not in an area with a numerical value on the Lot Coverage Overlay Map, no **lot coverage** applies.

10.80.40 Principal Building Requirements

10.80.40.1 General

(1) Application of this Article

The regulations in Article 10.80.40 apply to **buildings** or **structures** in the RM zone, other than **ancillary buildings** or **structures** which are subject to Article 10.5.60.

(2) Number of Dwelling Units on a Lot

If a zone label applying to a **lot** in the RM zone includes the letter "u", on the Zoning By-law Map, the numerical value following the letter "u" is the permitted maximum number of **dwelling units** on the **lot**.

10.80.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the RM zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map:
 - (i) 10.0 metres, for a **detached house** or **semi-detached house**; and
 - (ii) 12.0 metres, for any other **building** or **structure**.
- (C) despite (A) above, the permitted maximum height for a **duplex**, **triplex** or **fourplex** is the greater of:
 - (i) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
 - (ii) 10.0 metres. [By-law: 474-2023]

(2) Maximum Height of Specified Pairs of Main Walls

In the RM zone, the permitted maximum height of the exterior portion of **main walls** for a **detached house** or a **semi-detached house** is the higher of 7.0 metres above **established grade** or 2.5 metres less than the permitted maximum height in regulation 10.80.40.10(1), for either (A) or (B) below:

- (A) all side **main walls**, for at least 70 percent of the total width of each side **main wall**; or
- (B) all front **main walls** and all rear **main walls**, for at least:
 - (i) 60 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 12.0 metres or more;
 - (ii) 50 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** greater than 7.5 metres and less than 12.0 metres; and
 - (iii) 40 percent of the total width of all front **main walls** and all rear **main walls** if the **building** is on a **lot** with a **lot frontage** of 7.5 metres or less. [By-law: 1277-2022(OLT)]

(3) Maximum Number of Storeys

The permitted maximum number of **storeys** in a **building** on a **lot** in the RM zone is:

- (A) the numerical value following the letters "ST" on the Height Overlay Map;
- (B) if the **lot** is in an area with no numerical value following the letters "ST" on the Height Overlay Map, the number of **storeys** is not limited by this regulation; and

(C) The permitted maximum number of **storeys** in a **building** on a **lot** in regulation (A) does not apply to a **duplex, triplex or fourplex**. [By-law: 474-2023]

(4) Height of Main Pedestrian Entrance

In the RM zone, for a **detached house** or **semi-detached house**, the elevation of the lowest point of a main pedestrian entrance through the **front wall** or a side **main wall** may be no higher than 1.2 metres above **established grade**. [By-law: PL130592 Mar_2018]

(5) Width of Dormers in a Roof Above a Second Storey or Higher

In the RM zone, on a **detached house** or a **semi-detached house** with two or more **storeys**, the walls of a dormer are not **main walls** if:

- (A) the face of the dormer is in a roof directly above a part of a **main wall** that does not exceed the permitted maximum **main wall** height; and
- (B) the total width of the faces of the dormers in the roof described in (A) above is no greater than 40 percent of the width of the parts of the **main walls** that do not exceed the permitted maximum **main wall** height, measured at the level of the uppermost **storey** below the roof. [By-law: 1277-2022(OLT)]

(6) Maximum Height of Main Walls for a Detached House or Semi-Detached House with a Flat or Shallow Roof

Subject to regulation 10.80.40.10(1), if a **detached house** or **semi-detached house** in the RM zone has a roof with a slope of less than 1.0 vertical units for every 10.0 horizontal units for more than 50 percent of the total horizontal roof area:

- (A) despite regulation 10.80.40.10(2) above, additional **main walls** are permitted to be located above the maximum height of all **main walls** permitted in regulation 10.80.40.10(2), provided all the additional front **main walls** and rear **main walls** located above the **main walls** permitted in regulation 10.80.40.10(2) are set back a minimum of 1.4 metres from the front **main walls** and rear **main walls** permitted in regulation 10.80.40.10(2). [By-law: 1313-2023]

10.80.40.20 Building Length

(1) Maximum Building Length

In the RM zone, the permitted maximum **building length** for a **detached house** or a **semi-detached house** is 17.0 metres.

(2) One Storey Extension to Building Length if Required Lot Frontage is More than 12.0 Metres

In the RM zone, despite regulation 10.80.40.20(1), on a **lot** with a required minimum **lot frontage** of more than 12.0 metres for a **detached house** or for an entire **semi-detached house**, a **detached house** or **semi-detached house** may extend beyond the permitted maximum **building length** by a maximum of 2.0 metres, if the extended part:

- (A) has a maximum height of 5.0 metres and one **storey**;
- (B) is no wider than 50% of the width of the **dwelling unit** at its widest point; and
- (C) is at least 3.0 metres from each **side lot line**, not including a **side lot line** extending between the two **dwelling units** of the **semi-detached house**.

10.80.40.30 Building Depth

(1) Maximum Building Depth

In the RM zone, the rear **main wall** of a **detached house** or **semi-detached house**, not including a one **storey** extension that complies with regulation 10.80.40.20(2), may be no more than 19.0 metres from the required minimum **front yard setback**.

10.80.40.40 Floor Area

(1) Floor Space Index

In the RM zone, the permitted maximum floor space index is:

- (A) the numerical value following the letter "d" in the zone label on the Zoning By-law Map; or
- (B) if the zone label on the Zoning By-law Map does not include a "d" value on the Zoning By-law Map, the floor space index is not limited by this regulation; and
- (C) the permitted maximum floor space index in regulation (A) above does not apply to a **duplex, triplex or fourplex**. [By-law: 474-2023]

10.80.40.50 Decks, Platforms and Amenities

(1) Platforms at or Above the Second Storey of a Detached House

In the RM zone, platforms such as a deck or balcony, with access from the second **storey** or above of a **detached house** must comply with the following:

- (A) there may be no more than a total of four platforms, and no more than one on each of the front, rear and each side of the **detached house**; and
- (B) the maximum area of each platform is 4.0 square metres.

(2) Platforms at or Above the Second Storey of a Semi-Detached House

In the RM zone, platforms such as a deck or balcony, with access from the second **storey** or above of a **semi-detached house** must comply with the following:

- (A) there may be no more than a total of three platforms for each **dwelling unit**, and no more than one on each of the front, rear and exterior side of the **dwelling unit**;
- (B) the maximum area of each platform is 4.0 square metres; and
- (C) a platform at the rear of the **dwelling unit** is at least 1.8 metres from the common wall dividing the **dwelling units**, or a projection of that common wall to a **lot line**.

10.80.40.70 Setbacks

(1) Minimum Front Yard Setback

If regulation 10.5.40.70(1) does not apply, the required minimum **front yard setback** in the RM zone is 6.0 metres.

(2) Minimum Rear Yard Setback

The required minimum **rear yard setback** in the RM zone is the greater of:

- (A) 7.5 metres; or
- (B) 25% of the **lot depth**.

(3) Minimum Side Yard Setback

The required minimum **side yard setback** in the RM zone is:

- (A) 1.2 metres for a **detached house, duplex, triplex or fourplex**;
- (B) 1.5 metres for a **semi-detached house**; and
- (C) 2.4 metres for an **apartment building**, or a **non-residential building**. [By-law: 474-2023]

10.80.40.80 Separation

(1) Distance Between Main Walls of the Same Apartment Building

In the RM zone, if an **apartment building** has **main walls** where a line projected outward at a right angle from one of the **main walls** intercepts another **main wall** of the same **building**, the required minimum above-ground separation distance between those **main walls** is:

- (A) 5.5 metres if there are no openings to **dwelling units** in one or more of those **main walls**; and
- (B) 11.0 metres if each **main wall** has an opening to a **dwelling unit**.

(2) Distance Between Residential Buildings on the Same Lot

In the RM zone, if two or more **residential buildings** are located on the same **lot**, the required minimum above-ground separation distance between the **main walls** of the respective **buildings** is:

- (A) 5.5 metres if there are no openings to **dwelling units** in the **main wall** of one or more of the **buildings**; and
- (B) 11.0 metres if each **main wall** has an opening to a **dwelling unit**.

10.80.40.81 Separation Exemptions

(1) Permitted Separation Between Main Walls for Lawfully Existing Buildings

In the RM zone, if the **lawful** separation distance between the **main walls** of **lawfully existing buildings** on the same **lot**, or between **main walls** of the same **lawfully existing building**, is less than the required minimum separation distance between **main walls** required by this By-law, that **lawful** separation distance is the minimum separation distance for those **lawful main walls** of the **lawfully existing building**.

(2) Additions to Lawfully Existing Buildings

In the RM zone, any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 10.80.40.81(1) must comply with the required minimum separation distance between **main walls** required by this By-law or be authorized by a Section 45 Planning Act minor variance.